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EXECUTION VERSION

RENEWABLE ENERGY SERVICES AGREEMENT

DATED 11 JUNE, 2021

between

CROSSBOUNDARY ENERGY MADAGASCAR S.A.
(as the **Seller**)

and

QIT MADAGASCAR MINERALS S.A.
(as the **Buyer**)

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CONTENTS

Clause **Page**

1. DEFINITIONS AND INTERPRETATION 3
2. PROJECT 14
3. EFFECTIVE DATE AND TERM 14
4. EARLY PROCUREMENT 16
5. PURCHASE AND SALE OF ENERGY 17
6. DELIVERY 18
7. COMPENSATION, PAYMENTS AND BILLING 18
8. OBLIGATIONS OF THE PARTIES 19
9. FACILITY DEVELOPMENT 22
11. BUYER SYSTEM EVENTS 30
12. BUYER STEP-IN RIGHTS 31
13. BUYER EVENTS OF DEFAULT 32
14. SELLER EVENTS OF DEFAULT 33
15. TERMINATION OF THE PERMISSION AGREEMENT 34
16. TRANSFER OR DECOMMISSIONING 34
17. FORCE MAJEURE 37
18. CHANGE IN LAW 39
19. GENERAL 40
20. REPRESENTATIONS AND WARRANTIES 42
21. DISPUTE RESOLUTION 43
22. CONFIDENTIALITY 45
23. MISCELLANEOUS PROVISIONS 46

SIGNATURE PAGE 49

Schedule 1 Schematic diagram / aerial view of the Project Site on the Property ..50
Schedule 2 Functional Specification of Project and Interconnection Facilities 52
Schedule 3 Meter Specifications 54
Schedule 4 Testing Regime 57
Schedule 5 Form of Facility Completion Form 59
Schedule 6 Determination of Termination Payments 60
Schedule 7 Insurance Requirement 64
Schedule 8 Authorisations 65
Schedule 9 Early procurement Works 66
Schedule 10 Handover Procedures 67
Schedule 11 Minimum Guaranteed MWh 69
Schedule 12 Underperformance Withholding 70
Schedule 13 Determination of Deemed Energy 71
Schedule 14 Performance Bond 75
Schedule 15 Buyer Enabling Works 79

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THIS AGREEMENT is made between:

(A) **QIT MADAGASCAR MINERALS S.A.** registration number 1998.B.00480, a company duly incorporated under the Laws of Madagascar (the **Buyer**); and

(B) **CrossBoundary Energy Madagascar S.A.** registration number 35103 11 2021 0 10290, a company duly incorporated under the Laws of Madagascar (the **Seller**).

BACKGROUND

A. The Buyer wishes to supplement its electricity supply requirements for purposes of its mining operations.

B. Port d'Ehoala SA, a wholly owned subsidiary of the Buyer, and the concessionaire under a concession agreement with the Maritime and River Harbour Agency has rights to use the Project Site and has agreed to sub-lease the Project Site to the Seller, in terms of the Permission Agreement, for purposes of designing, financing, constructing, installing, owning, operating, maintaining a 12.78 MW Wind Facility, BESS Facility and 8.014 MWp Solar PV Facility.

C. The Seller wishes to sell and the Buyer wishes to exclusively purchase energy generated by the Facility on the terms and conditions contained herein.

D. The Seller acknowledges that the Buyer is entitled to on-sell Energy to JIRAMA, to the extent permitted under applicable Laws.

NOW, THEREFORE, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, unless the context otherwise requires, the capitalised terms used in this Agreement shall have the meanings given to them below:

1.1.1 **Abandonment** means the Seller has voluntarily ceased the project activities in relation to the Facility and failed to resume such project activities within 90 Days of such suspension or stoppage, or permanently withdrawn all, or substantially all, personnel from the Project Site.

1.1.2 **Acceptable Bank** means any bank (i) of international repute (ii) which holds a rating of BBB- or better by S&P, Baa3 or better by Moody's or an equivalent rating by any other credit rating agency of recognised international standing.

1.1.3 **Achieved Capacity** means the Capacity of the Facility as specified in the Facility Completion Form.

1.1.4 **Affiliates** means, in respect of a person, any person which controls (directly or indirectly) that person and any other person Controlled (directly or indirectly) by such first mentioned person, including, where a person is a company, the ultimate holding company of such person, any holding company of such person and any subsidiary (direct or indirect) of such holding company.

1.1.5 **Agreement** means this renewable energy services agreement including the schedules or annexes to it.

1.1.6 **Authorisation** means any approval, consent, licence, permit, authorisation, resolution, certificate or other permission granted or to be granted by a Government Authority required under any applicable Law for the enforcement of rights or performance of obligations under this Agreement, including the those authorisations listed in Schedule 8 (Authorisations).

1.1.7 **Auto-production Licence** means the auto-production authorisation to be procured in respect of the Project or parts thereof granted by the Madagascar Ministry of Energy, to the Buyer, and/or any amendment or modification of the Buyer's existing auto-production authorisation.

1.1.8 **BESS Facility** means an 8.25 MW or 7.9 MWh battery storage facility to be constructed, owned, operated, maintained and managed by the Seller on the intended Project Site and comprising of all plant, machinery and equipment, all associated buildings, structures, and other appurtenances.

1.1.9 **Business Day** means any Day other than a Saturday or a Sunday or an official public holiday in Madagascar;

1.1.10 **Buyer Connection Works** means the works that are the responsibility of the Buyer to ensure the Buyer's system is complete and capable of connecting to, synchronizing with, and receiving Energy Output from the Facility, including Buyer Enabling Works.

1.1.11 **Buyer Enabling Works** means the works required to be undertaken by the Buyer to facilitate the achievement of the Buyer Connection Works as set out in Schedule 15 (Buyer Enabling Works).

1.1.12 **Buyer's Engineer** means the engineer appointed by the Buyer who has duty of care solely to the Buyer.

1.1.13 **Buyer's Group** means the Buyer and its group of companies, including, without limitation, its direct and indirect subsidiaries and/or its holding company and/or subsidiaries of its holding company.

1.1.14 **Buyer Risk Event** means any delay or default by the Buyer in performing any of its obligations under this Agreement, but only if and to the extent that:

(a) such delay or default is not remedied during the remedy period provided in this Agreement;

(b) such delay or default is not the direct or indirect result of: (i) a breach by the Seller of any of its obligations under this Agreement or any other Project Agreement; or (ii) a Force Majeure Event affecting the Seller; and

(c) the Seller has used all reasonable efforts to reduce or procure the reduction to a minimum and mitigate the effect of such event or circumstance;

1.1.15 **Buyer System** means the electric power system owned by the Buyer, including all transmission and distribution lines and equipment, transformers and associated equipment, relay and switching equipment, generating equipment and protective devices and safety and communications equipment on the Buyer's side of a Delivery Point owned and/or operated by the Buyer and required for the performance by the Buyer of its obligations under this Agreement.

1.1.16 **Buyer System Event** means any constraint, unavailability, interruption, breakdown, Curtailment, inoperability or failure of or disconnection of the Facility from the Buyer System or any failure or disruption to the Buyer System which makes the Seller unable to deliver, or makes it unsafe for the Seller to deliver in that the continued delivery of energy would materially and adversely endanger persons or property but, in each case, only if and to the extent that such act, event or circumstance is not the direct or indirect result of (i) a breach by the Seller of any of its obligations under this Agreement and any other Project Agreement; or (ii) a negligent act or omission by the Seller, or (iii) a Force Majeure Event affecting the Seller.

1.1.17 **Capacity** means in respect of the Facility, at any time and from time to time, the capability (expressed in MW_{AC}) of the Facility to generate and deliver energy to the Delivery Point, for the avoidance of doubt, Capacity shall be net of auto-consumption and the electrical losses up to the Delivery Point.

1.1.18 **Change in Control** occurs in respect of any entity when a company or similar organisation or person:

(a) ceases (whether by way of ownership of shares, proxy, contract, agency or otherwise) to:

(i) cast, or control the casting of, more than 50% of the maximum number of votes that might be cast at a general meeting of that person; or

(ii) appoint or remove all, or the majority, of the directors or other equivalent officers of that person; or

(b) ceases to hold beneficially and legally more than 50% of the issued share capital of that person (excluding any part of that issued share capital that carries no right to participate beyond a specified amount in a distribution of either profits or capital).

1.1.19 **Change in Law** means the occurrence of any of the following events after the Signature Date:

(a) the introduction, adoption, enactment or promulgation of any new applicable law by any government authority or any change in the interpretation or application of any applicable Law, save for any of the aforementioned resulting in an increase in corporate income taxes of general application which does not discriminate against the Seller or against the Seller and other parties undertaking projects similar to the Project;

(b) the change or repeal of any applicable Law, save for any of the aforementioned resulting in an increase in corporate income taxes of general application which does not discriminate against the Seller or against the Seller and other parties undertaking projects similar to the Project;

(c) the introduction, adoption, or change of any authorisation or any material condition in connection with the issuance, renewal or modification of any authorisation;

(d) any change to the terms and conditions or to the interpretation or application of any authorisation or addition of new terms and conditions after granting said authorisation; or

(e) the revocation, repeal or cessation of effectiveness of any authorisation prior to the expiration date of such authorisation, provided that the relevant Party is in compliance with the material requirements and conditions established therein or if any authorisation was granted for a limited period its non-renewal (or its renewal in terms or subject to conditions less favourable to the relevant Party), provided that such Party has observed all the requirements applicable to the grant of that renewal; and

(f) the occurrence of the event:

(i) renders it unlawful to give effect to this Agreement; or

(ii) has a material adverse financial impact on the Project or materially and adversely affects the Commercial Intent or overall balance of liability and risk agreed to by the Parties in this Agreement; and

(g) is an event in respect of which the Seller is not entitled to any other relief pursuant to any other provisions of this Agreement;

(h) was not reasonably foreseen by the Seller on or before the Signature Date or if it was foreseen, the impact on the Project was not reasonably foreseen.

1.1.20 **Check Meter** means the energy meter (and all associated equipment), installed by the Seller adjacent to the Main Meter but on the Buyer's side of a Delivery Point for the benefit of the Buyer and to be used as part of the Metering System to measure data for back-up and comparison.

1.1.21 **Combined Facility** means the Solar PV Facility, Wind Facility, and BESS Facility including all plant, machinery and equipment, all associated buildings, structures roads on the Project Site that are not national, provincial or municipal roads, and other appurtenances, together with respective associated connection infrastructure.

1.1.22 **Commercial Intent** means the commercial intention of the Buyer and the Seller for entering into this Agreement, which includes in respect of the Buyer, inter alia, (i) the reduction and stability of its total energy cost, and (ii) the reduction of greenhouse gas emissions and receiving the benefits associated therewith, and for the Seller, the commercial value realised through this Agreement.

1.1.23 **Commercial Operation Date** or **COD** means the date on which the Buyer's Engineer accept and certifies the Facility Completion Form issued by the Seller, upon which the Solar PV Facility, Wind Facility or the Combined Facility has been completed and successfully passed the commissioning tests.

1.1.24 **Contracted Capacity** means the anticipated Capacity of the Facility at the Delivery Point and expressed as AC power capacity and in the case of the Solar PV Facility is anticipated to be 6.3MW_{AC} and in respect of the Combined Facility is anticipated to be 18.3 MW_{AC}.

1.1.25 **Contract Year** means each 12 Month period, commencing at the Commercial Operation Date and ending at the expiry of that 12 Month period, and the last Contract Year shall be the period commencing

from the anniversary of the Commercial Operation Date of the year this Agreement is terminated or expires to and including the date on which this Agreement is terminated or expires;

1.1.26 **Contractor(s)** means the EPC Contractor or the O&M Contractor (as may be applicable) and their respective subcontractors and/or equivalent arrangements in respect of the construction and operation of the Facility.

1.1.27 **Contractor Costs** means all liabilities, costs, and expenses that have been or will be reasonably and properly incurred by the Seller as a direct result of the termination of this Agreement, but only to the extent that:

(a) the losses are incurred in connection with operation and maintenance services or the completion of the works already undertaken or performed by the Contractors, including, without limitation:

(b) the cost of any materials or goods ordered or contracts placed that cannot be cancelled without such losses being incurred;

(c) any expenditure incurred in anticipation of the provision of the operation and maintenance services or the completion of the works;

(d) the cost of demobilisation;

(e) the costs are incurred under arrangements and/or agreements that are consistent with terms that have been entered into in the ordinary course of business and on reasonable commercial terms that cannot be cancelled without such losses being incurred;

(f) each of the Seller and the relevant Contractor has used reasonable endeavours to mitigate its losses;

(g) the Contractor's loss of profit equivalent to 5% of such costs; and

(h) the costs shall exclude any costs and or losses for which any portion of the Project Debt or Equity has been drawn or committed and the Buyer shall have the right to require the relevant Contractor to provide evidence proving any item claimed by it under this definition and to investigate and analyse such evidence.

1.1.28 **Control** means the power to directly, indirectly, to direct or cause the direction of the management and policies of a person, whether through the ownership of voting securities or any interest carrying voting right, or to appoint or remove or cause the appointment or removal of any directors (or equivalent officials) or those of its directors (or equivalent officials) holding the majority of the voting rights on its board of directors (or equivalent body) whether by contract or otherwise, and "**Controlled**" shall be construed accordingly.

1.1.29 **Curtailment** means a decision by the Buyer and/or any other action by the Buyer directed or caused by, or upon instruction from any Government Authority to limit the power output of the Facility, as the case may be, resulting in a reduction of Energy Output of the Facility, but shall exclude any reduction or limitation of Energy Output in accordance with the provisions of Clause 10.7.1(a).

1.1.30 **Day** means a period of 24 Hours beginning at 00:00 hours on a day and ending at 24:00 hours on that day.

1.1.31 **Deemed Energy** means that Energy Output that would otherwise be available to the Buyer, but for a Buyer System Event or Buyer Risk Event in accordance with the terms of this Agreement.

1.1.32 **Deemed Energy Payment** means an amount that shall be due and payable by the Buyer to the Seller for any Deemed Energy in accordance with the terms of this Agreement and Schedule 13 (Determination of Deemed Energy).

1.1.33 **Delivery Point** means the physical point where the Facility connects to the Buyer System (whether or not such point is situated on or off the Project Site), and where the Energy Output is to be delivered by the Seller to the Buyer.

1.1.34 **Direct Agreement** means the direct agreement between, amongst others, the Buyer, the Seller and any Lenders.

1.1.35 **Early Operating Energy** means the Energy Output delivered by the Seller to the Buyer, measured during the Early Operating Period.

1.1.36 **Early Operating Energy Payment** means in relation to the billing during the Early Operating Period, the amount (excluding VAT) that shall be due and payable by the Buyer to the Seller for Early Operating Energy, which shall be equivalent to the Tariff payable for the first year post COD.

1.1.37 **Early Operating Period** the period from the Day on which the Commissioning Tests begin to the Commercial Operation Date in respect of each of the Solar PV Facility, BESS Facility and Wind Facility.

1.1.38 **Early Procurement Payment** has the meaning given to it in Clause 4.3.

1.1.39 **Early Procurement Works** means the early procurement works commenced by the Seller prior to the Effective Date being the subject of the Supply Agreements as set out in Schedule 9 and which works shall not exceed an amount in aggregate of USD 5,230,586.

1.1.40 **Effective Date** means the date falling three Business Days after the date of fulfilment of the suspensive conditions set out in Clause 3.1.1 below.

1.1.41 **Energy** means electrical energy (measured in MWh) produced by the Facility pursuant to the terms of this Agreement.

1.1.42 **Energy Output** means the sum of Energy (expressed in MWh) generated by the Facility and delivered to the Delivery Point.

1.1.43 **Environmental Credits** means the voluntary emission reductions and certified emissions reductions (if any) issued to the Project pursuant to (i) the Kyoto Protocol of the United Nations Framework Convention on Climate Change; (ii) any voluntary mechanisms for issuing emission reductions; and (iii) any carbon offset and/or programme available in Madagascar.

1.1.44 **Environmental Obligations** means any and all obligations, liabilities and/or penalties that may be imposed in terms of any applicable environmental authorisations, or environmental laws of Madagascar in relation to the construction and operation of the Facility, including the requirement to make financial provision for rehabilitation of the Project Site (but excluding the obligations relating to any livelihood restoration and relocation plan in respect of the Project Site).

1.1.45 **Environmental Offsets** means any allowance, benefit, credit, relief or other legal right (including in relation to carbon taxes or credits or greenhouse gas emissions) allocated to or generated by the Project pursuant to applicable law, including any certified emission reduction credit.

1.1.46 **EPC Contract** means the contract to be entered into by the Seller for the engineering, procurement and construction of the Combined Facility.

1.1.47 **EPC Contract Price** means the amount agreed in terms of the EPC Contract for the engineering, procurement and construction of the Combined Facility.

1.1.48 **Equity** means: (i) the issued and paid-up share capital in the Seller (**Share Equity**); and (ii) any Shareholder Loans.

1.1.49 **Escrow Account** has the meaning set out in clause 7.1.1

1.1.50 **Estimated Exchange Rate** means the commercially available selling rate of USD or Euros in Malagasy Ariary as published during business hours by an Acceptable Bank on the date of issuance of the Invoice or the following Business Day (**Quoted Rate**).

1.1.51 **Expected MWh** means the Energy Output expected to be generated in every Contract Year and set out in Schedule 11.

1.1.52 **Expiry Date** means the date falling 20 years after the later of the Solar PV Facility Commercial Operation Date or the Wind Facility Commercial Operation Date, as may be extended or amended in accordance with the terms of this Agreement.

1.1.53 **Extreme Weather Event** means any year where the onsite combined energy resource factor (as described below) is less than 85%:

$$\text{Combined Energy Resource Factor} = \frac{\text{GHI}_{\text{measured}}}{GHI_{historical}} \times Contribution_{solar} + \frac{\text{WKE}_{measured}}{\text{WKE}_{historical}} \times Contribution_{wind}$$

where:

$GHI_{historical}$ = the historical annual average global horizontal irradiation determined with reference to a historical solar irradiation database, to be agreed upon by the Parties, with at least 20 years' worth of data and adjusted based on a minimum of 6 months of onsite measurement from a secondary standard pyranometer;

$WKE_{historical}$ = the historical annual average wind kinetic energy calculated from the windspeed at an agreed point, obtained from a historical wind resource database, to be agreed upon by the Parties, with at least 20 years' worth of data, ajusted based on a minimum of 6 months of onsite LIDAR measurement data and applied to the agreed turbine wind curve.

$GHI_{measured}$ = the actual annual global horizontal irradiation measured in any year by the onsite weather monitoring station;

$WKE_{measured}$ = the actual annual kinetic energy available in any year calculated from the windspeed measured at the agreed point and applied to the agreed turbine wind curve;

$Contribution_{solar}$ = percentage contribution of forecast annual solar energy output in relation to the forecast combined annual energy output;

$Contribution_{wind}$ = percentage contribution of forecast annual wind energy output in relation to the forecast combined annual energy output;

1.1.54 **Facility** means the Solar PV Facility, BESS Facility and/or the Wind Facility if it is proved to be technically feasible and is developed by the Seller. Each referenced respectively and jointly as appropriate.

1.1.55 **Facility Completion Form** means the form issued by Seller and certified by the Buyer's Engineer on the Commercial Operation Date of the Facility, in substantially the same form as that contained in Schedule 5 (Form of Facility Completion Form).

1.1.56 **Force Majeure** or **Force Majeure Events** means an event or circumstance or condition or combination of events or circumstances that: (i) is not reasonably foreseeable as of the date hereof, (ii) is not within the reasonable control , directly or indirectly, of the Party affected by the event and that materially and adversely affects the ability of the affected Party to perform any of its obligations under this Agreement, but only to the extent that:

(a) it is not the result of such Party's negligence or failure to act and is not the direct or indirect result of a breach by the affected party of any of its obligations under this Agreement or Project Agreements;

(b) could not be avoided or overcome by the affected Party's use of due diligence in the circumstances, and/or

(c) prevents, hinders or delays the affected Party in its performance of all (or part) of its obligations under of this Agreement (other than payment obligations).

Force Majeure is limited to the following events (but only to the extent that such an event, in consideration of the circumstances, satisfies the (a) to (c) above):

(i) natural disasters such as drought, earthquake, volcanic eruption, landslide, flood, storm, lightning strike, cyclone, tornado, typhoon, or other natural disasters or act of god;

(ii) fire, explosion, tempest, flood, drought, famine, ionising radiation, riot, and civil commotion;

(iii) any official or unofficial national or regional strike, lockout, go-slow, or other such labour disputes, which shall include any strikes affecting the power sector generally in Madagascar, but excluding any strikes or equivalent action undertaken solely by the Parties' or their Contractors' employees, contractors or personnel;

(iv) war or civil war (whether declared or undeclared), armed conflicts or terrorism;

(v) nuclear contamination;

(vi) air crash, shipwreck, train wreck or major failure or stoppage of transportation, objects failing from aircraft or other aerial devices or sonic boom;

(vii) pandemics, epidemics, embargo, blockade or outbreaks that affect the construction or operation of the Facility;

(viii) chemical or biological contamination of the Facility and/or the property as a result of any of the events referred to above, or

(ix) the identification of paleontological and archaeological conditions (including the discovery of any heritage resources), on the Project Site which i) could not have been discovered through the exercise of reasonable due diligence by the Seller acting in accordance with Good Utility Practice, and ii) which shall individually or cumulatively result in increased costs above a value of USD125,000 and materially adversely affects the ability of the Seller to perform its obligations under this Agreement; and

(x) any unforeseeable delay in obtaining any local or national government approval, license, concession or other such required government action, provided that the claiming Party has duly and timeously applied for and complied with all of its obligations in respect of the obtaining of such approval and has diligently pursued all recourse in accordance with Good Utility Practice.

1.1.57 **Good Industry Practice** means, at a particular time those practices, methods, equipment, specifications and standards of safety and performance and acts as are employed by experienced international contractors or operators in the electricity generation industry engaged in the same type of undertaking under the same or similar circumstances and conditions, which in the exercise of reasonable judgment in light of the facts known at the time the judgment was made, having complied with all applicable Laws and authorisations, are considered good, safe and prudent practice commensurate with standards of safety, performance, dependability, efficiency and economy.

1.1.58 **Government Authority** means any Malagasy ministry or department, any Malagasy minister, any Malagasy organ of state, any Malagasy official in the public administration or any other Malagasy governmental or regulatory department, commission, institution, entity, service utility, board, agency, instrumentality or authority (in each case whether national, provincial, or municipal) or any Malagasy court, each having jurisdiction over the matter in question.

1.1.59 **Incremental Energy** means the sum of the Energy Output and the Deemed Energy in excess of the Expected MWh which shall be capped at a maximum of up to 5% of Expected MWh in any given year.

1.1.60 **Insolvency Event** means, in respect of either Party, the occurrence of any one or more of the following events:

(a) it is, or is deemed for the purposes of any applicable law to be, unable to pay its debts as they fall due or insolvent (in each case other than solely as a result of its balance sheet liabilities exceeding its balance sheet assets);

(b) it admits its inability to pay its debts as they fall due;

(c) a moratorium is declared in respect of any of its indebtedness;

(d) any declaration of a moratorium or a composition, assignment or similar arrangement with any of its creditors, due to its inability to pay its debts;

(e) the passing of a resolution by its shareholders, directors or other officers for the purpose of considering any resolution for, to petition for or file documents with a court or any registrar for its winding-up, administration or dissolution, or any such resolution is passed (other than in connection with a solvent reorganisation);

(f) any person presents a petition, or files documents with a court or any registrar, for its winding-up, administration or dissolution, unless it is a petition for winding-up presented by a creditor which is being contested in good faith and with due diligence and is discharged or struck out within 60 Days;

(g) an order for its winding-up, administration or dissolution is made (other than in connection with a solvent reorganisation);

(h) any liquidator, business rescue practitioner, trustee in bankruptcy, compulsory manager, receiver, administrative receiver, administrator or similar officer is appointed in respect of it or any of its assets;

(i) its directors, shareholders or other officers pass a resolution of their intention to appoint a liquidator, business rescue practitioner, trustee in bankruptcy, compulsory manager, receiver, administrative receiver, administrator or similar officer; or

(j) any other analogous step or procedure is taken in any jurisdiction;

1.1.61 **Interconnection Facilities** means the electrical connection infrastructure required to connect the Facility to the Buyer System and the control and protective devices and metering facilities required to connect the Facility to the Delivery Points as further detailed in Schedule 2 (Functional Specification of Project and Interconnection Facilities);

1.1.62 **Internal Reorganisation** means the voluntary reorganisation, restructure or amalgamation of the Buyer's Group or its businesses, or the occurrence of an analogous event.

1.1.63 **JIRAMA** means Jiro Sy Rano Malagasy, a state-owned electric utility and water services company with its registered offices in 13 Rabezavana Street, Ambodifilao, Antananarivo 101, Madagascar.

1.1.64 **Law** means

(a) any act, regulation or other statutory instrument or proclamation of any applicable jurisdiction in which any act or obligation in connection with this Agreement is or is to be carried out or regulated;

(b) any law, whether of a Constitutional, legislative or common law nature;

(c) any applicable standards and codes;

(d) any judgment, decree or similar order with mandatory effect or any binding requirement or mandatory approval of a Government Authority, including any government approval; and

(e) the rules, requirements and procedures of any green benefit scheme.

1.1.65 **Lenders** means any third-party lender, any financial institution or investor extending funding to the Seller for the purpose of the Project, and any agent acting on their behalf;

1.1.66 **Liabilities** means claims, damages, costs, debt or liabilities whatsoever (including contingent liabilities).

1.1.67 **Longstop Construction Date** means the date on which the Seller commences construction of the Facility, within 45 Days of the Effective Date and which shall be evidenced by a construction confirmation form issued by the EPC Contractor to the Buyer.

1.1.68 **Longstop Date** means the date that is 270 Days after the Scheduled COD, as the same may be revised from time to time in accordance with the terms of this Agreement.

1.1.69 **Main Meter** means the energy meter (and all associated equipment), part of the Metering System, installed by the Seller on the Seller's side of a Delivery Point used to measure and record Energy Output, in compliance with the Network Requirements and the electrical quality of such output.

1.1.70 **Metering System** means, together, the Main Meter, the Check Meter and the Power Quality Meters (to the extent not incorporated in the Main Meter).

1.1.71 **Minimum Acceptance Capacity** means the minimum acceptable Capacity of each of the Solar PV Facility and the Wind Facility at the Delivery Point which is equal to 95% of the Contracted Capacity of the Facility at the Delivery Point.

1.1.72 **Network Requirements** means the technical operating requirements in relation to grid compliance and HFO safe operating requirements to complied with by the Seller in operating the Facility which shall be provided by the Buyer to the Seller prior to the Effective Date and shall comprise the Network Technical Rules and DER Performance Requirements as defined in Schedule 2.

1.1.73 **Non-effective Notice** has the meaning given to it in clause 4.5.

1.1.74 **Non-Performance Curtailment Notice** means the written notice issued by the Buyer to the Seller instructing it to reduce or discontinue the generation and or delivery of Energy Output due to the failure by the Seller to comply with the Network Requirements in accordance with clause 10.7.1(b).

1.1.75 **O&M Contract** means the contract to be entered into by the Seller and the O&M contractor for the operation and maintenance of the Facility.

1.1.76 **Performance Bond Expiry Date** has the meaning set out in clause 9.5.1(a).

1.1.77 **Permission Agreement** means the sub-lease agreement entered into between the Seller and the Port d'Ehoala SA in respect of which the Port d'Ehoala SA sub-leases the Project Site to the Seller.

1.1.78 **Permitted Transferee** means, in relation to any Shareholder, any entity that has the equivalent or better development experience and financial standing as the Shareholder, is not subject to Sanctions and satisfies the requirements of the Buyer's policies and Rio Tinto Business Standards, including *The Way We Work*, the *Supplier Code of Conduct* and the *Business Integrity Standards*.

1.1.79 **Port d'Ehoala SA** means a public limited company under Malagasy law with a share capital of USD 100,000, whose registered office is located at Immeuble Assist Lot n.35, 5th floor Ivandry, Antananarivo Madagascar, registered with the Antananarivo Trade and Companies Register under No. 2006B00941.

1.1.80 **Power Quality** means the characteristics of the electricity at a given point on an electrical system, evaluated against a set of reference technical parameters as set out in the Network Requirements.

1.1.81 **Project** means, *inter alia*, the development, financing, ownership, design, construction, commissioning, operation and maintenance of the Facility and at the end of the Term, at the election of the Buyer, transfer of the Facility to the Port d'Ehoala SA or another nominee of the Buyer, or decommissioning of the Facility and rehabilitation of the Project Site.

1.1.82 **Project Agreements** means the Project Development Agreement, the Permission Agreement, EPC Contract and the O&M Contract.

1.1.83 **Project Debt** means:

(a) at any date, prior to the Refinancing and while the development and operation of the Project is being financed by way of Equity all amounts or principal and interest due and payable by the

Seller to the Shareholders that are outstanding and treated as third party debt at that date, including all default interest accrued and accruing as well as any previously disclosed and properly evidenced fees, costs and expenses.

(b) at any date, after the Refinancing of the Project to include third party debt, all amounts of principal and interest that are outstanding under the original financing agreements at that date to third party debt providers, and also including all accrued and accruing default interest, breakage premiums or breakage fees limited to an amount equivalent to 1% of the net debt amount as well as all other documented fees, costs and expenses due under those financing agreements and in connection with any hedging arrangements entered into by the Seller, less any breakage gains.

1.1.84 **Project Development Agreement** means the agreement signed by and between the CrossBoundary Energy Management and the Buyer, dated 11 March 2021, in respect of the development of the Combined Facilities including the schedules or annexes to it.

1.1.85 **Project Site** means the site upon which the Facility is to be constructed and operated as depicted in Schedule 1 (Schematic diagram / aerial view of the Project Site on the Property).

1.1.86 **Refinancing** means the repayment of loans and other amounts outstanding under the finance documents which is funded, directly or indirectly, by way of financial indebtedness incurred or redeemable preference shares issued by the Seller for the purpose of raising debt finance, and refinance will be construed accordingly.

1.1.87 **Rehabilitation Reserve** means an amount of USD295,000 held in a separate interest bearing account (**Rehabilitation Reserve Account**) established in Madagascar with a bank that has a minimum rating of BBB- or better by S&P, Baa3 or better by Moody's or an equivalent rating by any other credit rating agency of recognized international standing for the benefit of the Buyer OR an insurance policy to the value of USD295,000 for which the Buyer will be a co-insured and beneficiary, the proceeds of which will be used for decommissioning of the Facility and rehabilitation of the Project Site.

1.1.88 **Relevant Ariary Equivalent Amount** means, in respect of a given Invoice, the amount of Malagasy Ariary required to purchase the amount of USD equal to the total value specified in the Invoice.

1.1.89 **Relevant Effective Exchange Rate** means the commercially available selling rate of USD in Malagasy Ariary as published during business hours by an Acceptable Bank on the Payment Date, plus the reasonably estimated costs, charges or deductions to be made in relation to any subsequent conversion of Malagasy Ariary back into USD or Euros.

1.1.90 **Scheduled COD** means the date falling 12 Months after the Effective Date in respect of the Solar PV Facility and 12 Months falling after the commencement of construction of the Wind Facility, as such date may be revised from time to time in accordance with the terms of this Agreement.

1.1.91 **Scheduled Outage** means a full or partial interruption of the generating capability of the Facility for planned maintenance in accordance with Clause 10.3.1;

1.1.92 **Seller Assets** means those assets that are the property of the Seller pursuant to applicable Law, which arise or derive from the Project, including all raw materials, consumable and spare parts, all tangible personal property (including patents, patent licences, patent applications, trade names, trademarks, trademark registrations and applications, trade secrets, copyrights, know-how and any other intellectual property rights), all intangible personal property, computerised and non-computerised records, reports, data, files and information and all insurance policies and rights with respect to any insurance proceeds payable to or for the account of the Seller.

1.1.93 **Shareholder(s)** mean the holders of the Share Equity in the Seller.

1.1.94 **Shareholder Loans** means loans made by the Shareholders to the Seller.

1.1.95 **Share Transfer** means the transfer of the Seller Shares by the Shareholders to the Port d'Ehoala SA or another nominee of the Buyer.

1.1.96 **Signature Date** means the date of signature of this Agreement by the Party last in time to do so.

1.1.97 **Solar PV Facility** means an 8.014 MWp solar photovoltaic facility to be constructed, owned, operated, maintained and managed by the Seller on the intended Project Site and comprising of all plant, machinery and equipment, all associated buildings, structures, roads on the Project Site that are not national, provincial or municipal roads, and other appurtenances.

1.1.98 **Steering Committee** means the decision-making committee as constituted in accordance with the provisions of the Project Development Agreement.

1.1.99 **Supply Agreements** means the agreements concluded with the suppliers listed in Schedule 9, the terms and conditions of which have been approved by the Buyer prior to conclusion thereof.

1.1.100 **Surviving Provisions** means Clauses 1 (Definition and Interpretation), 4 (Early Procurement), 8.6 (Project Site), 19.4.2 (Indemnities), 21 (Dispute resolution), 23 (Miscellaneous Provisions), Schedule 6 (Determination of Termination Payments) Clause 16(Transfer or Decommissioning) and any other provisions of this Agreement which are expressed to continue in force after termination or which by necessary implication must continue after termination.

1.1.101 **Tariff** means the amounts set out in clause 5.1.1(b).

1.1.102 **Term** has the meaning set out in Clause 3.2.2.

1.1.103 **Underperformance Withholding** means the Buyer's entitlement to withhold liquidated damages for underperformance from the revenue payable to the Seller in the 1st month of the following year from when the liquidated damages are calculated as due, to be calculated in accordance with clause 10.8 and the provisions in Schedule 12 (Underperformance Withholding).

1.1.104 **Underperformance Bond** has the meaning set out in clause 10.8.6.

1.1.105 **Unscheduled Outage** means any Outage that is not a Scheduled Outage and that is not caused by a Force Majeure Event, a Buyer System Event or a Buyer Risk Event.

1.1.106 **USD** means United States dollars.

1.1.107 **Wind Facility** means a 12.78MW wind facility to be constructed, owned, operated, maintained and managed by the Seller on the intended Project Site and comprising of all plant, machinery and equipment, all associated buildings, structures, roads on the Project Site that are not national, provincial or municipal roads, and other appurtenances.

1.2 **Interpretation**

1.2.1 In this Agreement:

(a) references to a statutory provision include any subordinate legislation made from time to time under that provision and include that provision as modified or re-enacted from time to time;

(b) words importing the masculine gender include the feminine and neuter genders and vice versa; the singular includes the plural and vice versa; and natural persons include artificial persons and vice versa;

(c) references to a **person** include a natural person, company, close corporation or any other juristic person or other corporate entity, a charity, trust, partnership, joint venture, syndicate, or any other association of persons;

(d) references to a **subsidiary** or a **holding company** shall be references to a subsidiary or holding company as defined in the Companies Act;

(e) if a definition imposes substantive rights and obligations on a Party, such rights and obligations shall be given effect to and shall be enforceable, notwithstanding that they are contained in a definition;

(f) any definition, wherever it appears in this Agreement, shall bear the same meaning and apply throughout this Agreement unless otherwise stated or inconsistent with the context in which it appears;

(g) if there is any conflict between any definitions in this Agreement then, for purposes of interpreting any clause of this Agreement or paragraph of any Schedule, the definition appearing in that clause or paragraph shall prevail over any other conflicting definition appearing elsewhere in this Agreement;

(h) where any number of Days is prescribed, those Days shall be reckoned exclusively of the first and inclusively of the last Day unless the last Day falls on a Day which is not a Business Day, in which event the last Day shall be the next succeeding Business Day;

(i) where the Day upon or by which any act is required to be performed is not a Business Day, the Parties shall be deemed to have intended such act to be performed upon or by the next succeeding Business Day;

(j) any provision in this Agreement which is or may become illegal, invalid or unenforceable in any jurisdiction affected by this Agreement shall, as to such jurisdiction, be ineffective to the extent of such prohibition or unenforceability and shall be treated as having not been written and severed from the balance of this Agreement, without invalidating the remaining provisions of this Agreement or affecting the validity or enforceability of such provision in any other jurisdiction;

(k) the use of any expression covering a process available under English law (such as but not limited to a winding-up) shall, if any of the Parties is subject to the law of any other jurisdiction, be interpreted in relation to that Party as including any equivalent or analogous proceeding under the law of such other jurisdiction;

(l) references to any amount shall mean that amount exclusive of VAT, unless the amount expressly includes VAT; and

(m) the rule of construction that if general words or terms are used in association with specific words or terms which are a species of a particular genus or class, the meaning of the general words or terms shall be restricted to that same class shall not apply, and whenever the word **including** is used followed by specific examples, such examples shall not be interpreted so as to limit the meaning of any word or term to the same genus or class as the examples given.

1.2.2 The expiration or termination of this Agreement shall not affect such of the provisions of this Agreement which are expressly provided to operate after any such expiration or termination, or which of necessity must continue to have effect after such expiration or termination, notwithstanding that the relevant provisions themselves do not provide for this.

1.2.3 Each of the provisions of this Agreement has been negotiated by the Parties and drafted for the benefit of the Parties, and accordingly the rule of construction that the contract shall be interpreted against or to the disadvantage of the Party responsible for the drafting or preparation of this Agreement, shall not apply.

2. PROJECT

2.1 The Facility shall supplement the Buyer's electricity supply requirements for its mining operations.

2.2 The Seller may commence construction of the Solar PV Facility before the Wind Facility, resulting in the Solar PV Facility achieving commercial operation separately from the Wind Facility.

2.3 The power generated by the Facility shall be purchased exclusively by the Buyer.

2.4 The Seller acknowledges that the Buyer is entitled to on-sell Energy to JIRAMA, to the extent permitted under applicable Laws.

3. EFFECTIVE DATE AND TERM

3.1 Solar PV Facility Term

3.1.1 The provisions of this Agreement insofar as it relates to the Solar PV Facility (other than the Surviving Provisions which shall be unconditional and of immediate force and effect on and with effect from the Signature Date), are subject to the fulfilment or waiver of the suspensive conditions that:

(a) save for any requirement of effectiveness thereunder that this Agreement becomes effective, financial close has been achieved in terms of the finance documents;

(b) the Seller has delivered a valid and enforceable Performance Bond to the Buyer; and

(c) the following development activities have been completed:

(i) approval from the Madagascar Ministry of Energy confirming the amendment to the Autoproduction Licence;

(ii) signature of the Permission Agreement and same becoming unconditional in accordance with its terms (other than any condition relating to this Agreement);

(iii) approval from the Office National pour l'Environnement amending Buyer's environmental authorisation to incorporate the Solar PV Facility;

(iv) letter issued by the civil aviation authority/airport of Madagascar in respect of the Solar PV Facility; and

(v) the construction permit is issued in relation to the Solar PV Facility.

3.2 **Combined Facility Term**

3.2.1 This Agreement, insofar as it relates to the Wind Facility, shall be effective from date on which the following suspensive conditions are fulfilled and/or waived but such date shall be within 60 days of completion of the development activities related to the Wind Facility in accordance with the Project Development Agreement / from the Effective Date;

(a) approval from the Office National pour l'Environnement amending Buyer's environmental authorisation to incorporate the Wind Facility;

(b) civil aviation approval is obtained in respect of the Wind Facility;

(c) the construction permit is issued in relation to the Wind Facility; and

(d) Confirmation from the Steering Committee, approving commencement of construction of the Wind Facility, which approval shall include the approval of the Buyer.

3.2.2 This Agreement:

(a) shall be effective from the Effective Date until:

(i) early termination in accordance with its terms;

(ii) the date falling 20 years following the date of COD of the Solar PV Facility (if the Wind Facility fails to achieve COD); or

(iii) the date falling 20 years following the date of COD of the Wind Facility,

(the **Term**).

3.2.3 The Buyer has the option, exercisable by providing to the Seller:

(a) a notice no later than 12 months prior to the expiration of the Term, to extend the Term for no less than five years and no more than 10 years at a tariff equivalent to the Tariff payable in the last Contract Year of the Term if no major maintenance or replacement of a major equipment is required to extend the operation life of the Combined Facility.

(b) If the Seller proves to the reasonable satisfaction of the Buyer that major maintenance or replacement of major equipment is required to extend the life of the Combined Facility, the Parties shall negotiate in good faith for a period of no longer than 60 Days, save as may be extended by Agreement of the Parties, on the adjusted tariff to be payable by the Buyer for the extended term. If the Parties fail to agree with the 60-Day period, the Term shall not be extended.

3.2.4 Upon extension of the Term, the Commercial Intent shall be maintained and, save as may be agreed between the Parties, all other terms and conditions of this Agreement shall remain the same and an appropriate amendment of this Agreement shall be entered into to reflect the extension of the Term.

4. EARLY PROCUREMENT

4.1 At the request of the Buyer, the Seller commenced the Early Procurement Works prior to the Effective Date.

4.2 The Seller shall timeously provide the Buyer with draft Supply Agreements. The Buyer shall within 10 Business Days of receipt of the Supply Agreements provide the Seller with comments in respect thereof. Following the Buyer's approval of the terms and conditions of the Supply Agreement, the Seller shall provide the Buyer with evidence of the costs incurred related to the Early Procurement Works on a regular basis and upon the request of the Buyer.

4.3 The Parties agree that should this Agreement fail to come into full force and effect by the earlier of:

4.3.1 the issuance of either a Non-effective Notice; or

4.3.2 within 9 months of the Signature Date (**Early Procurement Longstop Date**),

due to:

(a) a default of the Buyer of any of its obligations set out in the Surviving Provisions, the Buyer, subject to the provisions of this Clause 4 and Schedule 9, shall reimburse the Seller all proven costs incurred in respect of the Supply Agreements plus an internal rate of return on capital invested of 9.60%; or

(b) Force Majeure, the Buyer, subject to the provisions of this Clause 4 and Schedule 9, shall reimburse the Seller all proven costs incurred in respect of the Supply Agreements, plus an internal rate of return on capital invested of 5%;

(each an **Early Procurement Payment**).

4.4 For the avoidance of doubt, the Buyer shall pay the Seller all losses suffered by the Seller as a result of any cancellation fee or other levy, fee, penalty or tax related to the cancellation of any Early Procurement Works order, and any such amount shall be included in the Early Procurement Payment where the terms and conditions of such Supply Agreement(s) were approved by the Buyer.

4.5 On either Party becoming aware that this Agreement shall not become effective, either Party shall promptly issue a written notice (**Non-effective Notice**) to the other Party.

4.6 The Seller shall within 30 Days of issuance of the Non-effective Notice prepare and deliver to the Buyer a statement detailing the estimated quantum of the Early Procurement Payment along with all supporting information and calculations.

4.7 Subject to Clause 4.9, within 60 Days of receipt of the statement contemplated under Clause 4.6 above, the Buyer may elect in writing:

4.7.1 for it or its selected nominee to take transfer of the Early Procurement Works by assuming physical possession thereof; or

4.7.2 for the Supply Agreements to be ceded and assigned to the Buyer or its selected nominee,

(the **Transfer Date**), and shall subsequently be required to pay the Seller the Early Procurement Payment within 120 Days of issuance of the Non-effective Notice.

4.8 If the Buyer does not elect to take transfer of the Early Procurement Works under Clause 4.7, the Seller shall, for a period not exceeding 60 Days following the Transfer Date, use its best commercial endeavours to mitigate such losses and the Parties shall engage in good faith discussions to further mitigate the losses incurred as a result of the Early Procurement Works (**Loss Mitigation Discussions**). Such mitigation discussions may include, but not be limited to the:

(a) Seller retaining ownership of the Early Procurements Works assets, as appropriate, and redirecting those assets to alternative locations or projects; and

(b) sale of the assets acquired through the Early Procurement Works to third parties, with due consideration to cost of sales and applicable taxes.

4.9 Should the Parties not reach agreement following the Loss Mitigation Discussions, or should the Parties not be able to execute the mitigation plan, developed during the Loss Mitigation Discussions, within the period agreed during the Loss Mitigation Discussions, then the Buyer shall within 30 Days of the Loss Mitigation Discussions pay the Seller the Early Procurement Payment provided that the internal rate of return referred to in Clause 4.3.2(a) shall be discounted by 1%, and the Seller shall transfer ownership of the Early Procurement Works to the Buyer.

4.10 This Agreement, insofar as it relates to the Early Procurement Works, shall be effective from date on which confirmation is received from the Steering Committee, approving the scope, maximum cost and commencement of the Early Procurement Works as detailed in Schedule 9, which approval shall include the approval of the Buyer.

4.11 Should either party require any changes to such Early Procurement Works, it may request to discuss in good faith any such changes with the other party, and shall require confirmation from the Steering Committee, approving such changes to the Early Procurement Works, which approval shall include the approval of the Buyer.

4.12 To the extent that the Early Procurement Works (or any part thereof) are due to be delivered to the Project Site prior to the Effective Date, the Seller shall ensure that the Early Procurement Works (or any part thereof) are placed in a designated storage facility, approved by the Buyer for the Buyer's cost and expense. The Seller shall indemnify and hold the Buyer harmless in respect of any loss or damage arising from the Seller's breach of the provisions of this Clause 4.12.

5. PURCHASE AND SALE OF ENERGY

5.1 Net Energy Output

5.1.1 Subject to the terms and conditions of this Agreement:

(a) during the Early Operating Period the Seller shall sell exclusively to the Buyer, and the Buyer shall purchase, all Early Operating Energy and make the Early Operating Energy Payment, however the Buyer shall not be obliged to make Deemed Energy Payments in the event that it is prevented from taking delivery of the Early Operating Energy;

(b) with effect from the Commercial Operation Date up to and including the last Day of the Term, the Seller shall sell exclusively to the Buyer, and the Buyer shall purchase, all Net Energy Output for:

(i) USD 0.06935 per kWh for the Energy Output delivered from the Solar PV Facility; or

(ii) USD 0.06935 per kWh for the Energy Output delivered from the Combined Facility; or

(iii) if the Seller is not able to generate and deliver Net Energy Output to the Buyer due to the occurrence of a Buyer Risk Event or a Buyer System Event, the Deemed Energy in accordance with this Agreement;

(the **Tariff**).

5.1.2 In addition to the amounts set out in clause 5.1.1(b) above, the Buyer shall pay the Seller a capacity charge equal to USD 57,878 per month for use of the BESS during the period that the BESS is operational.

5.1.3 The Tariff and capacity charge shall escalate annually at a rate of 2%.

5.1.4 The Tariff base date is 1 January 2022.

6. DELIVERY

6.1 Delivery Point

6.1.1 The Seller shall deliver the Net Energy Output to the Buyer at the Delivery Point.

6.1.2 For the avoidance of doubt, the Capacity of the Facility is not permitted to be greater than the Maximum Capacity at the Delivery Point, as defined in Schedule 2 (Functional Specifications of Project and Interconnection Facilities), at any time.

6.2 Transfer of Risk and Title

Transfer of risk and title with respect to the Net Energy Output shall pass to the Buyer at the Delivery Point.

7. COMPENSATION, PAYMENTS AND BILLING

7.1 Payment Security

7.1.1 As security for its payment obligations under this Agreement, the Buyer shall make payment of and maintain an amount equal to the value of two months' anticipated Tariff payments in a ring-fenced bank account (**Escrow Account**) that can be accessed by the Seller upon a failure by Buyer to make payment within the specified payment period or prescribed remedy period in terms of this Agreement.

7.1.2 Where the Seller has exercised its rights under Clause 7.1.1, the Buyer shall within 30 Business Days of the date of payment of any amounts from the Escrow Account replenish the Escrow Account to the amount stipulated in Clause 7.1.1 above.

7.2 Billing

7.2.1 The Seller shall deliver to the Buyer an itemised invoice showing the amount due in Malagasy Ariary and payable in respect of any Energy Output supplied to the Buyer and any applicable Deemed Energy Payments, such itemised invoice shall also be in respect of any Early Operating Energy supplied to the Buyer (each, an **Invoice**).

7.2.2 Each Invoice shall be due and payable by the Buyer within 45 Days of the end of the month within which the Invoice was received by the Buyer or, if such due date is not a Business Day, the next succeeding Business Day (each such date, a **Payment Date**).

7.2.3 Unless otherwise agreed by both Parties in writing:

(a) The cost of Energy Output and Deemed Energy (as applicable), stated in US Dollars, will be paid by the Buyer in Malagasy Ariary and calculated in accordance with this clause.

(b) The Seller shall record on each invoice the Estimated Exchange Rate and the resulting Malagasy Ariary equivalent amount to be paid by the Buyer on the Payment Date.

(c) The Seller shall reconcile the Estimated Exchange Rate on each Invoice with the Relevant Effective Exchange Rate on the Payment Date of such Invoice. If there is a difference between the Estimated Exchange Rate and the Relevant Effective Exchange Rate, such difference (FX Adjustment) shall be calculated by the Seller and reconciled (in Malagasy Ariary) with the Buyer, every six months. The FX Adjustment shall compensate for any foreign exchange loss or gain experienced by the Seller.

7.2.4 Delays in the issuance of any such Invoice will not constitute any waiver of the Buyer's obligation to pay, or the Seller's right to collect, any payment due under this Agreement.

7.2.5 The Buyer shall be entitled to set off any Underperformance Withholding from the payments due to the Seller in terms of this Agreement.

7.3 **Disputed payments**

If any sum or part of any sum stated in an Invoice is disputed by the Buyer, then:

7.3.1 the Buyer shall within 10 Business Days of receipt of such disputed Invoice, issue to the Seller a notice (**Invoice Dispute Notice**) specifying exactly what it is disputing within the Invoice, including data and/or records upon which the dispute is premised;

7.3.2 the Buyer shall pay the undisputed amount by the Payment Date;

7.3.3 the Parties shall use their reasonable endeavours to resolve the payment dispute by amicable negotiation, and if the Parties are unable to resolve the dispute within 10 Business Days of the Payment Date, then either Party may refer such dispute to an independent Expert agreed upon by the Parties for determination in accordance with this Agreement.

7.4 in respect of the disputed amount, the Buyer shall pay such amount as is agreed or determined payable in respect of the disputed sum on the Payment Date for the original Invoice, or, if later, within 45 days of the end of the month within which the revised Invoice is received by the Buyer following: (i) the date on which the Parties resolve the disputed sum; or (ii) the date of determination by an Expert or the been referred if the dispute has for expert determination or arbitration.

8. **OBLIGATIONS OF THE PARTIES**

8.1 **Primary Obligations of the Seller**

8.1.1 Prior to and for the duration of the Term, the Seller shall:

(a) design, finance, construct, test, commission, operate and maintain the Facility in in accordance with:

(i) Good Industry Practice;

(ii) the applicable Law;

(iii) the Seller's authorisations;

(iv) the prescribed technical requirements including the Network Requirements; and

(v) in such a manner as to achieve minimum design life of 20 operational years;

(b) maintain security of the Project Site.

(c) deliver Minimum Guaranteed MWh; and

(d) prepare, negotiate and execute all project documents required for the construction and operation of the Facility.

8.1.2 At the end of the Term, or upon the early termination thereof, the Seller shall:

(a) at the election of the Buyer, either:

(i) transfer the Project to Port d'Ehoala SA or another nominee of the Buyer (including another IPP); or

(ii) decommission the Facility and rehabilitate the Project Site,

each upon the terms and subject to the conditions set out in this Agreement.

8.1.3 In respect of clause 8.1.2 above, the Seller is obliged to procure and maintain the Rehabilitation Reserve. If, at the end of the Term or early termination of this Agreement, the Buyer elects:

(a) that Port d'Ehoala SA or another nominee of the Buyer should take transfer of the Project, then the Seller shall transfer, cede and assign and/or hand over the Rehabilitation Reserve to the selected transferee for the transferee's use and benefit; or

(b) to decommission the Facility and rehabilitate and refurbish the Project Site, the Seller will be obliged to utilise the Rehabilitation Reserve to undertake the decommissioning rehabilitation activities.

8.2 **Primary obligations of the Buyer**

8.2.1 The Buyer shall purchase, all Energy Output for consideration, or if the Buyer is not able to take delivery of Energy Output due to the occurrence of a Buyer Risk Event or a Buyer System Event, the Deemed Energy.

8.2.2 The Buyer shall undertake the Buyer Connection Works in a timely and proper manner in accordance with the construction and commissioning schedule of the Facility.

8.2.3 The Buyer shall use its best endeavours to procure the Port d'Ehoala SA's compliance with the Permission Agreement.

8.3 **Authorisations**

8.3.1 The Buyer shall, at its cost, obtain and maintain in force all Buyer Authorisations.

8.3.2 The Seller shall, at its cost, obtain and maintain in force all Seller Authorisations including, for the duration of the Term, bearing the full responsibility for any order issued by any government authority pursuant to, and in accordance with, the applicable authorisations and environmental laws, and shall discharge all environmental obligations in relation to the Facility and the Project Site that are within the control of the Seller, acting in accordance with Good Industry Practice for the duration of this Agreement.

8.3.3 Each Party shall provide such reasonable assistance, documentation and other information as other Party may require in order to obtain and maintain such Authorisations.

8.4 **Refinancing**

8.4.1 The Seller undertakes that any Refinancing shall be undertaken by a reputable financial institution and that in the event of any Refinancing, the financial exposure of the Buyer shall be limited to that as was applicable at the Effective Date.

8.4.2 The Seller shall provide the Buyer with written notice, not less than three months before it commences with the contractual arrangements for any proposed Refinancing or re-arrangement. The Seller shall request the prior written consent of the Buyer if the Refinancing shall or is reasonably likely to increase the Buyer's exposure, contingent liability related to the Project and or allocate additional risk to the Buyer.

8.4.3 The Buyer agrees to provide reasonable co-operation to the Seller in respect of the due diligence or "know your client" requirements of the Lenders undertaking the Refinancing.

8.5 **Change in Control and Equity**

8.5.1 For the duration of this Agreement, the Seller and its Shareholders undertake that there will be no Change in Control in the Seller without the prior written approval of the Buyer, which approval shall not be unreasonably withheld or delayed.

8.5.2 The Seller and its Shareholders undertake that there will be no change in the Equity of the Seller for 36 Months following the Commercial Operation Date, unless such disposal of Equity is to a Permitted

Transferee. In the event of a disposal of Equity to third parties, the Seller shall provide the Buyer with prior written notice of the proposed purchaser of Equity. If the Buyer determines, acting reasonably, that the proposed purchaser of the Equity is a Permitted Transferee then the prior approval of the Buyer shall not be required for the disposal. The Buyer shall notify the Seller of its determination within 20 Business Days' of receipt of Seller's notice of disposal.

8.5.3 Unless the Buyer intends to undertake an Internal Reorganisation, which does not undermine the creditworthiness of the Buyer, the Buyer may not assign, cede or transfer all of its rights and obligations under this Agreement, unless such change has been approved by the Seller, which approval shall not be unreasonably withheld.

8.6 **Project Site**

8.6.1 The Seller has entered into the Permission Agreement and shall maintain the peaceful use and possession of the Project Site and such associated rights as may be necessary for the purposes of undertaking and implementing the Project for the duration of the Term, including securing the Project Site from intruders and vandalism.

8.6.2 The Seller agrees and undertakes that, as between it and the Buyer:

(a) if the Seller fails to comply with any of its obligations under this clause, it alone shall be liable for and bear the full responsibility of and consequences for such failure, and the Buyer shall not bear any liability, responsibility or consequence for or of such failure; and

(b) it indemnifies and shall hold harmless, upon demand, the Buyer against any claims, damages, losses, expenses and any other consequences of or arising out of the Seller's failure to comply with this clause.

8.6.3 Subject to applicable Laws and the Buyer's obligations in relation to the livelihood restoration and relocation plan, the Seller shall be fully responsible for the suitability of the Project Site, for the conduct of the Project, including but not limited to its climatic, hydrological, hydro-geological, ecological, environmental, and geotechnical, geological conditions paleontological and archaeological conditions (including the discovery of any heritage resources), the adequacy of the road to, and routing of power lines existing at the Effective Date on, the Project Site and the availability of adequate supplies of utilities.

8.6.4 The Seller agrees and undertakes that, as between it and the Buyer in relation to the Project being undertaken on the Project Site:

(a) it shall be solely responsible for, shall bear full responsibility for and shall discharge all Environmental Obligations in relation to the Facility on the Project Site pursuant to and in accordance with the applicable Authorisations and Laws; and

(b) it shall be solely responsible for and shall discharge all obligations and shall bear all consequences (including the possibility that any of the following could lead, directly or indirectly, to a Seller Event of Default) that arise as a direct or indirect result of any appeal or review being lodged against any amendment to any of the Authorisations; or

(c) if the Seller fails to comply with any of its obligations under Clause 8.6.4, it alone shall be liable for and bear the full responsibility of and consequences for such failure, and the Buyer shall not bear any liability, responsibility or consequence for or of such failure;

(d) if any consequence arises pursuant to any circumstance, event or situation detailed in Clause 8.6.3, the Seller alone shall be liable for and bear the full responsibility of and consequences for such circumstance, event or situation, and the Buyer shall not bear any liability, responsibility or

consequence for or of such circumstance, event or situation, including any consequential Seller Event of Default;

(e) that the Buyer has no obligations of any nature to monitor compliance with or to enforce the terms and conditions of any of the Authorisations;

(f) it indemnifies and shall hold harmless, upon demand, the Buyer against any claims, damages, losses, expenses and any other consequences of or arising out of the Seller's failure to comply with Clause 8.6.4; and

(g) it indemnifies and shall hold harmless, upon demand, the Buyer against any claims, damages, losses, expenses and any other consequences of or arising out of any consequence arises pursuant to any circumstance, event or situation detailed in Clause.

8.6.5 The Sellers obligations pertaining to any residual liability caused by the Seller and/or its affiliates and/or contractors, and not attributable to the Buyer during the subsistence of this Agreement, shall remain in full force and effect after the Termination Date and for the period falling within any statute of limitations pertaining thereto.

9. FACILITY DEVELOPMENT

9.1 Construction

9.2 The Seller shall engineer, procure, construct, commission and test the Facility in accordance with the design and equipment parameters set forth in Schedule 2 (Functional Specification of Project and Interconnection Facilities). Any Dispute regarding compliance with the foregoing obligation may be referred to an Expert for determination pursuant to Clause 21.2.

9.3 Commercial Operation Date

9.4 The Seller shall achieve the Commercial Operation Date by the Scheduled COD.

9.5 Seller's Performance Security for COD

9.5.1 Performance Bond

(a) As security for the achievement of the Commercial Operation Dates, by the Scheduled COD, the Seller shall, on the Signature Date, issue a performance bond in favour of the Buyer in the form of Schedule 14 (Performance Bond) and in an amount of no more than USD2,855,000, issued by a bank acceptable to the Buyer (**Performance Bond**), which shall be valid until 6 months after the Commercial Operation Date of the respective Facility (**Performance Bond Expiry Date**).

(b) From the Effective Date until the date that construction of the Wind Facility is commenced, the Performance Bond shall be issued in an amount of USD1,125,000.

(c) The Parties agree that:

(i) from the date that construction of the Wind Facility is commenced and until the Commercial Operation Date of the Solar PV Facility, the Performance Bond shall be issued in an amount of USD3,059,000; and

(ii) once the Commercial Operation Date of the Solar PV Facility is achieved, the value of the Performance Bond shall be reduced to an amount of USD1,934,000 to secure the achievement of the Commercial Operation Date of the Wind Facility by the Scheduled COD.

9.5.2 Claims under the Performance Bond

(a) The Buyer shall be entitled to make a claim under the Performance Bond in the event of a default by the Seller of its obligations under this Agreement, including but not limited to:

(i) failure by the Seller to extend the validity of any Performance Bond or replace, increase the value of and/or change the provider of the Performance Bond, in which event the Buyer may claim the full amount of the relevant Performance Bond and retain the proceeds as cash security until such time as a valid Performance Bond has been delivered to the Buyer in accordance with the requirements of this clause;

(ii) any delay to the achievement of the Scheduled COD by the Seller;

(iii) circumstances which entitle the Buyer to terminate this Agreement as a result of a Seller Default as set out under clause 14;

(iv) circumstances contemplated under clause 9.8.2.

(b) Prior to the Performance Bond Expiry Date, the Seller shall ensure that the Performance Bond is valid and enforceable until such date.

(c) If the terms of the Performance Bond specify its expiry date, and the Seller has not become entitled to its return by the date 28 Days prior to the relevant expiry date, the Seller shall extend the validity of the Performance Bond until such Performance Bond has been replaced in accordance with clause 9.5.1(b). Where the Buyer has exercised its right in clause 9.5.2(a)(i) and a replacement or extended Performance Bond (as applicable) has subsequently been provided in accordance with the requirements of this clause 9.5, then, subject to the Buyer's right to have recourse to the cash security following the Seller's breach of this Agreement, such cash or the balance of such cash shall be repaid to the Seller immediately upon the Seller procuring the replacement or extended Performance Bond thereafter.

(d) In the event that this Agreement is terminated in accordance with terms hereof, the Performance Bond shall remain in place until the date all liabilities owed by the Seller to the Buyer or any other outstanding termination requirements have been satisfied in accordance with this Agreement.

9.6 **Testing and Commissioning**

9.6.1 The Seller shall be responsible for the implementation of test procedures during the construction and commissioning of the Facility in accordance with Schedule 4 (Testing Regime) and shall notify the Buyer in advance of all testing as provided in Schedule 4 (Testing Regime). The Buyer and the Independent Engineer shall be entitled to be present at any such testing as provided in Schedule 4 (Testing Regime).

9.6.2 During the testing provided for in Schedule 4 (Testing Regime) and in the EPC Contract, in each case in accordance with the testing procedures and testing schedule implemented thereunder:

(a) the Buyer shall procure that the Seller can self-dispatch the Facility in order for the Seller to perform the relevant tests; and

(b) the Seller shall sell exclusively to the Buyer and the Buyer shall purchase at the full Tariff, the Net Energy Output produced by the Facility and delivered to the Delivery Points.

9.7 **Interconnection Equipment**

9.7.1 Subject to the prior review and written approval of the Buyer, the Seller shall at its own cost and expense design and construct the required Interconnection Facilities in accordance with Schedule 2 (Functional Specification of Project and Interconnection Facilities), applicable Law, Good Utility Practice and the operating parameters and procedures set forth in the Network Requirements.

9.7.2 If the Seller commences construction of the Solar PV Facility before the Wind Facility, for each of the Facilities, there will be separate and discrete Commercial Operation Dates, Scheduled COD and Longstop Dates.

9.8 **Delays in achieving the Commercial Operation Date**

9.8.1 If, due to a failure or delay caused by the Seller in performing its obligations under this Agreement, the Seller fails to achieve the Commercial Operation Date for each of the facilities on or before the

Scheduled COD for that Facility, then from and after the Scheduled COD, the Seller shall be obligated to pay liquidated damages to the Buyer, for the delay at the rate of 0.1% of the EPC Contract Price per Day subject to a maximum amount of 10% of the EPC Contract Price, adjusted accordingly for the respective Facility.

9.8.2 The delay liquidated damages will be invoiced by the Buyer and payment will be due within 30 Days of issue of such invoice. At the expiration of 30 Days the amount invoiced will be a debt due and payable to the Buyer on demand and may be deducted from any payments otherwise due from the Buyer to the Seller.

9.8.3 The Buyer shall be entitled to call on the Performance Bond if the liquidated damages are not paid by the Seller.

9.8.4 If a Buyer Risk Event or Buyer System Event causes any delay to the achievement by the Seller of the Commercial Operation Date by the Scheduled COD then:

(a) the Scheduled COD shall be extended by that number of Days that the applicable event actually delayed the achievement of Commercial Operation Date, provided that the Seller shall take reasonable steps to mitigate the effect of such delay and shall notify the Buyer of such Buyer Risk Event or Buyer System Event within 10 Business Days after the Seller became aware or should have become aware of the event or circumstance; and

(b) the Seller shall be entitled to an amount equivalent to 50% of the Deemed Energy Payments that would have been payable to the Seller from the Scheduled COD, for the period until the Commercial Operation Date is achieved.

9.8.5 If the Seller fails to comply with the requirements set out in clause 9.8.4 in relation to any extension to the Scheduled COD, the Buyer shall be discharged from all liability in connection with such claim for extension.

9.9 **Longstop Date**

9.9.1 The Seller shall be entitled to declare the Commercial Operation Date for the Facility at any time up to 17:00 on the Longstop Date in respect of that Achieved Capacity for which the Buyer's Engineer has completed the Facility Completion Form by no later than 17:00 on the Longstop Date and, if the Seller does so and the Achieved Capacity is greater than the Minimum Acceptance Capacity, the Buyer shall not be entitled to call a Seller Event of Default in terms of Clause 14.1.2 of the definition of Seller Event of Default.

9.9.2 If the Commercial Operation Date is not achieved by the Longstop Date, then the Buyer shall be entitled to terminate this Agreement in accordance with Clause 14 (Seller Event of Default) for a Seller Event of Default.

9.10 **Adjustment of Capacity at Commissioning**

9.10.1 **Reduction in Capacity**

(a) If the Achieved Capacity on the Commercial Operation Date is less than the Contracted Capacity but greater than the Minimum Acceptance Capacity, then the Seller shall either:

(i) if possible, at its own expense and in the shortest possible time, on giving notice to the Buyer, effect such repairs or replacements to the Facility, or any part thereof, as necessary for the Facility to achieve its Contracted Capacity, following which the Commercial Operation Date shall be re-assessed in accordance with Schedule 4 (Testing Regime), and:

(A) if the Achieved Capacity, as re-assessed, is greater than the Contracted Capacity, then Clause (B) shall then apply;

(B) if the Achieved Capacity is equal to the Contracted Capacity, then the Seller shall deliver to the Buyer a Facility Completion Form, following which the Commercial Operation Date will be the first Day starting at 00:00 hours following the Day upon

which the Buyer receives from the Seller such Facility Completion Form and the Achieved Capacity shall be the Contracted Capacity; or

(C) if the Achieved Capacity, as re-assessed, remains equal to or greater than the Minimum Acceptance Capacity but less than the Contracted Capacity, then, at the Buyer's sole discretion, on and from the Commercial Operation Date, the Contracted Capacity shall become equal to the Achieved Capacity,

provided in each case that such repairs or replacements must be completed and the Facility Completion Form must have been completed and submitted by the Seller to the Buyer by the Longstop Date; or

(ii) elect, without effecting any repairs or replacements (or further repairs or replacements, as the case may be) to the Facility, to deliver to the Buyer a Facility Completion Form, following which the Commercial Operation Date will be the first Day starting at 00:00 hours following the Day upon which the Buyer receives from the Seller such Facility Completion Form.

(b) Subject to the Buyer's right to terminate this Agreement and at the Buyer's sole discretion, if the Achieved Capacity is less than the Minimum Acceptance Capacity, then the Seller shall, upon written notice from the Buyer and at its own expense and in the shortest possible time, effect such repairs or replacements to the Facility, or any part thereof, necessary for the Facility to achieve an Achieved Capacity greater than or equal to the Minimum Acceptance Capacity, provided that such repairs or replacements must have been completed, re-assessed and the duly completed Facility Completion Form must have demonstrated an Achieved Capacity equal to or greater than the Minimum Acceptance Capacity by the Longstop Date.

(c) If the Seller fails to achieve an Achieved Capacity equal to or greater than the Minimum Acceptance Capacity by the Longstop Date, the Buyer shall be entitled to terminate this Agreement in accordance with Clause 14.1.2 (Seller Event of Default) for a Seller Event of Default.

9.10.2 **Achieved Capacity greater than Contracted Capacity**

If the Achieved Capacity is greater than the Contracted Capacity, then the Buyer may elect to purchase the additional electricity at the prevailing Tariff. Where such excess energy is produced as a result of the Achieved Capacity being more than the Contracted Capacity, the Deemed Energy calculation will exclude this portion of excess energy. If the Buyer elects to purchase the additional electricity, Seller shall deliver to the Buyer a Facility Completion Form, following which the Commercial Operation Date will be the first Day starting at 00:00 hours following the Day upon which the Buyer receives from the Seller such Facility Completion Form and the Contracted Capacity shall be the Achieved Capacity.

10. FACILITY OPERATION AND MAINTENANCE

Unless otherwise provided in this Agreement, at all times from the Commercial Operation Date until the end of the Term, the Seller undertakes to operate and maintain the Facility, at its sole cost and risk in accordance with the terms of this Agreement.

10.1 Operation of the Facility

10.1.1 The Seller undertakes to:

(a) deliver Energy to the Delivery Point;

(b) use Energy generated by the Facility in the operation and maintenance of the Facility; and

(c) at all times co-operate in good faith with the Buyer.

10.1.2 The Seller shall develop Operating and Maintenance Procedures for the Facility, which shall:

(a) be based on the design requirements specified in Schedule 2 (Functional Specification of Project and Interconnection Facilities);

(b) be consistent with the requirements of this Agreement, applicable Laws, the Network Requirements, manufacturer's warranties and Good Utility Practice; and

(c) provide comprehensive operating, maintenance and communication procedures for all operational interfaces between the Facility and the Interconnection Facilities.

10.1.3 The Seller shall provide the Buyer with a copy of such Operating and Maintenance Procedures no later than 45 Days prior to the Scheduled COD. If the Buyer requires any changes to such Operating and Maintenance Procedures, it may request to discuss in good faith any such changes with the Seller no later than 15 Days prior to Scheduled COD, provided that in no circumstance shall the Seller be required to incorporate any change to the Operating and Maintenance Procedures which will or is likely to compromise or adversely affect any warranty or guarantee provided by the Contractors or would constitute a change or variation order for the purposes of the EPC Contract and/or the O&M Contract (as applicable).

10.1.4 Nothing contained in this Agreement shall be construed as requiring the Seller to operate the Facility, at any time, including during an emergency, in any manner inconsistent with the applicable Laws, the Network Requirements and Good Utility Practice.

10.2 **Dispatch**

The Parties acknowledge that the Facility will, subject to the occurrence of Buyer System Events, be self-dispatched by the Seller.

10.3 **Planned Maintenance**

10.3.1 The Seller shall undertake scheduled maintenance, upon 60 Business Days prior written notice to the Buyer, including overhauls, capital improvements and replacements of major components, of the Facility in accordance with the maintenance schedules (each, a **Facility Maintenance Schedule**) developed pursuant to this Clause 10.3 (**Scheduled Outage**).

10.3.2 At least 60 Days prior to the Scheduled COD and in relation to the first three Contract Years, and at least 60 Days prior to the commencement of each subsequent Contract Year in relation to the next three Contract Years, the Buyer shall submit to the Seller a proposed maintenance schedule for the Mine (**Mine Maintenance Schedule**), so as to enable the Seller to plan the proposed maintenance of the Facility for each such Contract Year in alignment with the Mine Maintenance Schedule.

10.3.3 If the Buyer fails to provide the Mine Maintenance Schedule within such period, the Buyer shall be deemed to have accepted a proposed Facility Maintenance Schedule submitted to it by the Seller within 40 Business Days of the expiry of the aforementioned period. Any Dispute relating to the Maintenance Schedule shall be referred to an Expert for determination pursuant to Clause 21.2.

10.3.4 Notwithstanding the foregoing, the Seller shall be entitled to order a rescheduling of a Scheduled Outage if such rescheduling is a consequence of a Force Majeure Event or a Buyer Risk Event.

10.3.5 The Seller undertakes that it shall use all reasonable endeavours to minimise the downtime due to any maintenance contemplated in terms of Clause 10.3.1 above.

10.4 **Unscheduled Outages**

10.4.1 If an Unscheduled Outage occurs, the Seller shall:

(a) inform the Buyer of the Unscheduled Outage as soon as reasonably practicable after the earlier of: (i) the Seller becoming aware of the need for such Unscheduled Outage; and (ii) the occurrence of such Unscheduled Outage; and

(b) notify the Buyer of the expected extent and duration of the Unscheduled Outage.

10.4.2 The Seller shall be responsible for any costs incurred by it in respect of or in connection with or arising from any maintenance carried out by it during such Unscheduled Outage.

10.5 **Performance Reporting**

10.5.1 During the period between the Commercial Operation Date and the Expiry Date, the Seller shall maintain complete and accurate data and records required to facilitate the proper administration of this Agreement and the Project. The Buyer shall be granted unrestricted access to the Seller's remote monitoring platform to access up-to the minute log of operations and such other required data and records (Project Operating Data) in respect of the operation of the Combined Facility. If remote monitoring platform is unavailable, the Buyer shall be entitled to request a record of Project Operating Data from the Seller, updated at least daily, in a format reasonably acceptable to the Buyer.

10.5.2 The Seller shall submit a monthly report to the Buyer by the 15th Day of each subsequent month which reflects such Project Operating Data and any maintenance activities during the month immediately preceding the month in which such report is submitted, including a schedule of, actual and forecasted yield and planned maintenance activities for the next month, and any other information reasonably requested by the Buyer.

10.6 **Metering**

10.6.1 The Seller shall, at its expense, procure, supply, install, own, operate and maintain at the Delivery Points the Metering Systems and Power Quality Meters.

(a) The Energy Output delivered to the Buyer pursuant to this Agreement shall be measured by the Metering Systems at the Delivery Point.

(b) The Seller shall at its sole cost and expense install, test and calibrate the Metering Systems at the Delivery Points, in accordance with Schedule 3 (Meter Specifications). The Check Meter shall be installed for the benefit of the Buyer to ensure accurate measurement of the Energy Output.

(c) The Metering Systems shall have the functional capability to determine the Net Energy Output and Reactive Energy Output quantities as set out in Schedule 3 (Meter Specifications).

10.6.2 **Sealing**

(a) The Metering Systems shall be sealed in the presence of both Parties, and such seals shall be broken only for the purposes of inspection, testing, maintenance or adjustment of the relevant meter in accordance with this Clause 10.6.

(b) Any Party intending to break a seal shall provide the other Party with no less than 48 Hours' written notice and shall break the seals in the presence of an authorised representative of that Party. If the other Party when served with the Notice does not appear, the Party wishing to break the seals may proceed but shall provide written explanation to the other Party within 48 Hours of such breaking of the seals.

(c) Subject to Clause 10.6.2(a) the seals shall not be removed or relocated by any Party without the consent of the other Party, which consent shall not be unreasonably withheld.

10.6.3 **Readings**

(a) Data readings from the Metering Systems shall be done at midnight (00:00 hours) on the first Day of each Billing Period or as otherwise set forth in an agreed schedule of Monthly meter readings (such agreement not to be unreasonably withheld or delayed) for the purposes of determining the Net Energy Output; provided, however, that metering values shall be recorded, at the end of each metering interval of 30 minutes, starting each Day at midnight (unless otherwise agreed by the Parties).

(b) Data readings from the Metering Systems shall be taken by authorised representatives of the Seller and an authorised representative of the Buyer shall be entitled to witness the Metering System reading for verification purposes only.

(c) The data metered by the Main Meters of the Metering Systems shall be used as the official binding measurement of the aggregate Net Energy Output delivered by the Seller to the Buyer at the Delivery Points. If the reading from the Main Meters differs from the Check Meters by

more than approximately ±0.6% (**Tolerance Level**), then both Metering Systems shall be tested and if any is found to be outside the Tolerance Level, it shall be recalibrated.

(d) If:

(i) the Main Meter is found to be inaccurate, then the Net Energy Output shall be measured on the basis of the readings registered by the Check Meter;

(ii) the Check Meter is found to be inaccurate, then the Net Energy Output shall be measured on the basis of the readings registered by the Main Meter; and

(iii) both Metering Systems are found to be inaccurate, the Net Energy Output shall be calculated on the basis agreed to by the Parties, and failing agreement within 10 Days of becoming aware of the discrepancy either Party may refer such Dispute to an Expert for determination pursuant to Clause 21.2.

10.6.4 **Recalibration**

(a) The accuracy of each of the Metering Systems shall be tested and verified by the Seller or the Buyer, as the case may be, in the intervals prescribed or recommended by the manufacturers of the Metering Systems. Each Party shall bear the cost of the annual testing of its own meters.

(b) If any seal securing a meter constituting part of the Metering System is found to be broken or any evidence exists of meter tampering or other interference; if a meter constituting part of the Metering System fails to register; or if the measurement made by a metering device is found upon testing to vary by more than 0.3% (or any more restrictive requirement of the Network Requirements) from the measurement made by the standard meter used in the test as described in Clause 10.6.1 (together a **Defective Metering Event**), the Parties agree that the Energy Output shall be measured on the basis of the readings registered by the meter which has not caused the Defective Metering Event, provided its reading is within the Tolerance Levels, however if both meters are found vary by more than 0.3%, then the Energy Output shall be calculated on the basis agreed to by the Parties, and failing agreement within 10 Days of becoming aware of the Defective Metering Event, either Party may refer the matter to an Expert for determination pursuant to Clause 21.2.

(c) If a Defective Metering Event on both meters is found to have occurred, an adjustment shall be made correcting all measurements of Net Energy Output made by the metering devices during the period when the Defective Metering Event to the date on which such devices are recalibrated, repaired, replaced and/or sealed (as applicable) in accordance with this Clause (**Adjustment Period**).

(d) Within 30 Business Days after the determination of the amount of any adjustment, the Buyer shall pay to the Seller any additional amounts then due for the Net Energy Output delivered to the Buyer during the Adjustment Period, or the Buyer shall be entitled to a credit against any subsequent payments for the Net Energy Output delivered until such time as the full amount of the overpayment has been delivered, as the case may be.

(e) If a Defective Metering Event occurs or if any component of the Metering System is found not to be functioning properly:

(i) the Seller shall promptly recalibrate, repair or replace such system, provided that any costs incurred for recalibration, repair or replacement of the Main Meter and all other costs associated with any other component of the Metering System shall be at the expense of the Seller; and

(ii) the Seller shall inform the Buyer as to the dates on which any recalibration, repair or replacement is to occur and such activities may be witnessed and commented upon by the Buyer,

10.6.5 and upon completion of any such recalibration or any repair or replacement of such metering systems the Metering Systems shall be sealed jointly by the Parties.

10.7 **Network Requirements**

10.7.1 The Seller shall be required to operate the Facility in accordance with the Network Requirements. If the Seller fails to do so and its actions or omissions meaningfully and adversely affect or are demonstrably reasonably likely to meaningfully and adversely affect the Buyer's operations and or its productivity, the Buyer shall have the right, depending on the risk to the Buyer and its inability to mitigate its risk, to:

(a) immediately cut-off the supply of Energy Output from the Combined Facility or the Wind Facility or the Solar PV Facility, as the case may be;

(b) issue a Non-Performance Curtailment Notice on the Seller in terms of which the Buyer shall require the Seller to reduce or discontinue generating and delivering Energy Output from the Combined Facility or the Wind Facility or the Solar PV Facility, as the case may be, for a period of time required by the Buyer to mitigate its loss and or for the Seller to eliminate the risk to the Buyer's operations.

10.7.2 The actions of or instruction from the Buyer shall not constitute a Curtailment and Deemed Energy shall not be payable by the Buyer in this instance.

10.7.3 The Buyer shall operate the Buyer's System in accordance with the Network Requirements.

10.8 **Guarantee of Minimum Energy and Withholding**

10.8.1 The Seller shall guarantee the delivery of minimum MWh (Minimum Guaranteed MWh) from the Facility which shall be recorded monthly and measured and reconciled annually against the actual MWh delivered or capable of being delivered by the Facility as indicated in Schedule 11 attached hereto.

10.8.2 If, at the end of each operating year following the Commercial Operation Date of the Wind Facility, the actual MWh delivered or capable of being delivered in that year is less than 95% of Minimum Guaranteed MWh in respect of the Combined Facility (**Underperformance Trigger**), the Buyer shall be entitled to Underperformance Withholding for each incremental kWh below the Underperformance Trigger that was not delivered or capable of being delivered. Where the revenue amount for the first month of the following year is less than the Underperformance Withholding, the Buyer may carry over any balance of Underperformance Withholding to the invoices for subsequent months, as required.

10.8.3 Underperformance Withholding shall be limited in its application to each incremental kWh that was not delivered or capable of being delivered below the Underperformance Trigger and above 75% of cumulative Minimum Guaranteed MWh.

10.8.4 The Seller shall maintain a cumulative account (**Performance Ledger**) in which Incremental Energy will be netted-off against accrued Underperformance Withholding on an ongoing basis. The Buyer shall be entitled to access and review the Performance Ledger at any time during the Term.

10.8.5 If at the end of each operating year, the cumulative balance of the Performance Leger is credited with Incremental Energy:

(a) then the Buyer shall release to the Seller the value of any prior Underperformance Withholding equal to the positive Incremental Energy balance; and

(b) should the Buyer have released all Underperformance Withholding to the Buyer, any Incremental Energy balance in the Performance Ledger shall accumulate and be netted-off against future Underperformance Withholding.

10.8.6 Should the actual MWh delivered or capable of being delivered in that year equate to less than 90% of the Minimum Guaranteed MWh in respect of the Combined Facility, as measured on a cumulative basis at the end of each operating year throughout the term of this Agreement, the Buyer shall be entitled to require the Seller to procure a performance bond from a bank acceptable to the Buyer in the amount of USD180,000, on 20 Business Days' written notice, as security for the Buyer's losses and/or damages including in relation to terminating this Agreement on the basis that the Seller having failed to deliver Minimum Guaranteed MWh (**Underperformance Bond**). The Buyer shall be permitted to call the Underperformance Bond for any failure by the Seller to meet the Minimum Guaranteed

MWh. The Underperformance Bond may be released where the Seller's cumulative underperformance level exceeds 90% as measured at the end of any subsequent operating year. The Seller shall ensure that the Underperformance Bond is valid and enforceable until such bond is released as contemplated under this clause 10.8.6.

10.8.7 Should the underperformance occur in a year where an Extreme Weather Event is experienced, the Minimum Guaranteed MWh shall be reduced to account for such Extreme Weather Event in a linear manner on the following basis:

(a) if the combined energy resource factor is less than 85%, the Minimum Guaranteed MWh shall be reduced by 15%; or

(b) if the combined energy resource factor is less than 84%, the Minimum Guaranteed MWh shall be reduced by 16%,

and so forth for each incremental percentage below 85%.

10.8.8 Upon the third anniversary of the Commercial Operation Date of the Wind Facility and at every fifth anniversary of the Commercial Operation Date of the Wind Facility (Measurement Point), should the actual cumulative MWh delivered or capable of being delivered equate to less than 85% of the cumulative Minimum Guaranteed MWh (as adjusted for any Extreme Weather Events), this shall constitute a Seller Event of Default.

10.8.9 In the event that this Agreement is terminated by the Buyer due to the occurrence of the Seller Event of Default contemplated in clause 10.8.8, the Underperformance Bond shall remain in place until the date all liabilities owed by the Seller to the Buyer or any other outstanding termination requirements have been satisfied in accordance with this Agreement.

11. BUYER SYSTEM EVENTS

11.1 Consequences of a Buyer System Event

11.1.1 The Seller shall include any claims for Deemed Energy in its monthly Invoice, which shall set out the amount of such Deemed Energy and during which part of the billing period it applied.

11.1.2 Within five Business Days after the Seller became aware (or should have become aware) of the Buyer System Event, the Seller shall notify the Buyer thereof, giving the Buyer full details of the nature of the Buyer System Event.

11.1.3 Any claim made by the Seller for Deemed Energy Payments as a consequence of a Buyer System Event shall require the Seller to evidence that:

(a) the Facility would otherwise have been available and able to generate and deliver Energy Output but for the Buyer System Event;

(b) the Deemed Energy Payment and/or relief from the obligations under this Agreement claimed could not reasonably be expected to be mitigated or recovered by the Seller acting in accordance with the standards of a Good Utility Practice;

(c) the Seller gave notice within the time period stipulated in clause 11.1.2. If the Seller failed to give notice within such period, the Seller shall not be entitled to Deemed Energy Payments and the Buyer shall be discharged from all liability in connection with the claim; and

(d) the Seller is using reasonable endeavours to perform its obligations under this Agreement.

11.1.4 In the event that the Seller receives compensation or relief for any loss already compensated for by way of a Deemed Energy Payment, it shall inform that Buyer and make an adjustment for such payment in the next invoice.

11.1.5 The Seller shall not be entitled to bring any claims for Deemed Energy Payments if the time for which any Buyer System Event has or have endured is:

(a) before the Scheduled COD; and

(b) in the period that the Commercial Operation Date is delayed beyond the Scheduled COD, subject to clause 9.8.4(a).

11.1.6 If and to the extent that:

(a) after the Commercial Operation Date, a Buyer System Event affects the ability of the Seller to generate and deliver Energy Output to the Buyer and the Allowed Buyer Unavailability Threshold has been met, then the Seller shall be entitled to Deemed Energy Payments; and

(b) the Commercial Operation Date is achieved prior to the Scheduled COD, then the Seller shall not be entitled to Deemed Energy Payments until Scheduled COD.

12. BUYER STEP-IN RIGHTS

12.1.1 If prior to the Refinancing of the Project by third party debt:

(a) a Seller Default occurs in accordance with:

(b) clause 14.1.2 (Failure to achieve COD);

(c) clause 14.1.5 (Minimum Guaranteed MWh);

(d) clause 14.1.11 (Abandonment); and

(e) clause 14.1.13 (breach), limited to breaches materially and adversely affecting performance of the Facility such that it is foreseeable that default could occur under Clause 14.1.5;

which is not remedied within the period specified in this Agreement, or if no such period is specified, not remedied within the period set forth in accordance with a remediation plan to be agreed between the Parties; or

12.1.2 the Buyer reasonably believes that it needs to take action in connection with the operation of the Facility because a serious and urgent risk arises:

(a) to the health or safety of persons or property, or to the environment;

(b) the continued productive operation of the mine; and/or

12.1.3 the Buyer reasonably and objectively demonstrates the need for it to take action in connection with the operation of the Facility to discharge a statutory duty, or

12.2 If after the Refinancing of the Project by third party debt:

12.2.1 the events in clause 12.1.1 occur and the Lenders fail to exercise their rights to step-in or exercise their rights to step-in and then step-out without remedying the breach by the Seller in terms of the Direct Agreement; or

12.2.2 the events in clause 12.1.2 and 12.1.3 occur,

then the Buyer shall be entitled to notify the Seller that it intends to undertake the obligations of the Seller and exercise its rights in terms of this Agreement or appoint a nominee, in its sole discretion, to do so.

12.3 If the Buyer wishes to take action, it shall as soon as possible after reaching its determination to do so notify the Seller in writing of:

12.3.1 the action it wishes to take;

12.3.2 its reasons for taking such action;

12.3.3 the date when it wishes to commence such action;

12.3.4 the time period (**Step-in Period**) which it reasonably believes will be necessary for such action and which must be a fixed period that shall in all circumstances not exceed 90 Business Days; to the extent practicable, the effect of such action on the Seller and its obligations to perform the project deliverable during the Step-in Period;

12.3.5 its undertaking not to, acting reasonably, incur any capital or consultant expenditure in excess of an amount of USD 400,000 on behalf of the Seller, without the Seller's prior written consent;

12.3.6 its indemnification of the Seller against any and all direct loss or damage caused by the negligence of the Buyer or its appointed nominee during the Step-in Period; and

12.3.7 its procurement of the necessary insurances as required of the Seller under this Agreement (or the ability for it to be covered under existing insurances held by the Seller), at the Buyer's cost.

12.4 Following the service of such notice, the Buyer shall take such action as notified to the Seller and any ancillary action as it reasonably believes is necessary (the **Necessary Action**) and the Seller shall give all assistance to the Buyer as it may require in the conduct of such Necessary Action.

12.5 If the Necessary Action is taken as a result of a breach by the Seller of any of its obligations under this Agreement, then for so long as and to the extent that such Necessary Action is taken and this prevents the Seller from performing any of its obligations:

12.5.1 the Seller shall be relieved from such obligations;

12.5.2 in respect of the period in which the Buyer is taking such Necessary Action, if Energy is still being delivered to the Buyer, the payments due from the Buyer to the Seller shall equal the amount the Seller would have received if it were performing the obligations affected by the Necessary Action in full over such period, less any damages in respect of that breach as calculated in accordance with this Agreement, and less an amount equal to the Buyer's costs of taking such Necessary Action; provided that, if by the expiry of the Step-in Period, the breach still subsists and if it constitutes a Seller Event of Default, then the Buyer must serve a notice requiring the Seller to remedy the Seller Event of Default.

12.6 The Buyer's exercise of its rights under this clause shall not constitute a waiver by it of any other rights it may have (including its rights to terminate this Agreement) before, on or after the Step-in date. The Seller shall co-operate with the Buyer in respect of such step-in, including but not limited to providing access to software, equipment and site and any other assistance and information requested by the Buyer. At the request of the Buyer, Seller shall within five Business Days develop a plan to demonstrate to the Buyer how it shall resume the proper performance of the Project (the **Step-Out Plan**) and shall provide such Step-Out Plan to the Buyer for approval.

13. BUYER EVENTS OF DEFAULT

13.1 Each of the following shall (to the extent not solely caused by a Seller Event of Default or a Force Majeure Event) be a Buyer Event of Default which, if not cured within the time permitted, shall give rise to the right on the part of the Seller to terminate this Agreement:

13.1.1 the failure by the Buyer to make any payment under this Agreement after it has become due and payable in each case within 75 Days after receipt from the Seller of a written notice calling upon it to do so;

13.1.2 the Buyer fails to maintain the required balance of the Escrow Account or replenish the balance of the Escrow Account within 30 Business Days after receipt of notice demanding the Buyer to remedy the breach;

13.1.3 the Permission Agreement is terminated by the Seller to the fault of the Port d'Ehoala SA in accordance with the terms of the Permission Agreement;

13.1.4 an Insolvency Event occurs in respect of the Buyer or Buyer Group; and/or

13.1.5 the Buyer breaches any anti-corruption law or its undertakings in respect of sanctions and or anti-bribery;

13.1.6 a breach by the Buyer of any material obligations which is not remedied within 30 Business Days after notice from the Seller to the Buyer stating that such a breach has occurred, identifying the breach in question in reasonable detail, and demanding remedy thereof.

13.2 **Consequences of Termination in respect of a Buyer Event of Default**

13.2.1 The Buyer shall have the option to call on the Seller to transfer the Facility to Port d'Ehoala SA or another nominee of the Buyer upon payment to the Seller of Termination Payment A set out in in Schedule 6 (Determination of Termination Payments), which shall include:

(a) Settlement of the Project Debt;

(b) shareholders' equity return as projected at the Signature Date;

(c) Contractor Costs; and

(d) Rehabilitation provisions and costs.

13.2.2 The Parties agree that the proposed decommissioning costs of approximately USD4,8 million included in the termination values in Schedule 6 (Determination of Termination Payments) is an indicative amount that may be revised at the date of termination if the Buyer elects to employ its own contractors to decommission the Facility at a lower cost.

13.2.3 Once the termination amount has been paid by the Buyer, the Facility shall be transferred to Port d'Ehoala SA or another nominee of the Buyer.

13.3 **Termination at the election of the Buyer**

The Buyer shall be entitled to terminate this Agreement upon 6 months' written notice to the Seller citing reasons of convenience. In this instance, the Seller shall be entitled to call on the Buyer to take transfer of the Combined Facility and the Buyer shall be required to pay Termination Payment A to the Seller as set out in Schedule 6 (Determination of Termination Payments).

14. SELLER EVENTS OF DEFAULT

14.1 Except where it occurs as a sole consequence of a Buyer Risk Event, Buyer System Event, Buyer Event of Default or a Force Majeure Event, each of the following events shall be a Seller Event of Default, which, if not cured within the time permitted, shall give rise to the right on the part of the Buyer to terminate this Agreement:

14.1.1 the Seller fails to commence construction within the Longstop Construction Date (or such date set out in the construction schedule, to be agreed between the Buyer and the Seller);

14.1.2 the Seller fails to achieve Commercial Operation Date by the Longstop Date it being acknowledged that the failure of the Seller to achieve any of the dates in the construction schedule (other than the Longstop Date) shall not be considered a breach of a material obligation under this Agreement;

14.1.3 Madagascar Ministry of Energy lawfully withdraws, revokes or cancels the Auto-production Licence due to the Seller's wrongful or negligent act or omission;

14.1.4 the Permission Agreement is terminated by Port d'Ehoala SA due to the fault of the Seller in accordance with the terms of the Permission Agreement;

14.1.5 for each Measurement Point, should the actual cumulative MWh delivered or capable of being delivered by the Seller equate to less than 85% of the cumulative Minimum Guaranteed MWh (as adjusted for any Extreme Weather Event);

14.1.6 an Insolvency Event occurs in respect of the Seller;

14.1.7 the Performance Bond lapses or expires or is no longer in full force and effect and is not replaced with an equivalent form of performance security within 15 Business Days of its lapse, expiry or invalidity;

14.1.8 the Seller or its Affiliates breach any anti-corruption or anti-bribery laws in relation to the Project;

14.1.9 the Seller or its Affiliates fail to comply with the Buyer's policies and Rio Tinto Business Standards, in relation to the Project, including *The Way We Work*, the *Supplier Code of Conduct* and the *Business Integrity Standards* and where such failure is capable of being remedied, is not remedied within 20 Business Days after notice from the Buyer to the Seller stating that such a breach has occurred;

14.1.10 the Seller becomes subject to a sale of equity or a Change in Control in contravention of the provisions of this Agreement;

14.1.11 Abandonment of the Project, either at construction phase or operation and maintenance phase;

14.1.12 a cession and/or delegation by the Seller of any of its rights or obligations under this Agreement, save for the Seller subcontracting under the EPC Contract and or O&M Contract, without the prior consent of the Buyer and where such breach is capable of being remedied, is not remedied within 10 Business Days after notice from the Buyer to the Seller stating that such a breach has occurred;

14.1.13 a breach by the Seller of any material obligations which is not remedied within the period agreed by the Buyer in the remediation plan proposed by the Seller to the Buyer in which all instances shall be longer than a period of 40 Business Days following notice from the Buyer to the Seller stating that such a breach has occurred, identifying the breach in question in reasonable detail, and demanding remedy thereof.

14.2 **Consequences of Termination in respect of a Seller Event of Default**

14.2.1 If the termination occurs after the Commercial Operation Date, the Buyer shall be entitled to call on the Seller to transfer the Facility to Port d'Ehoala SA or another nominee of the Buyer and the Buyer shall be required to pay Termination Payment B to the Seller that covers settlement of Project Debt, which amount shall be no more than the applicable value stated in the table annexed hereto as Schedule 6 (Determination of Termination Payments). The Seller shall be liable to the Buyer for all costs and any direct loss or damages, incurred by the Buyer as a consequence of the termination of this Agreement due to Seller Default.

14.2.2 Once the termination amount has been paid by the Buyer, the Facility shall be transferred to the Port d'Ehoala SA or another nominee of the Buyer.

15. TERMINATION OF THE PERMISSION AGREEMENT

15.1 If the Permission Agreement is terminated by Port d'Ehoala SA due to the fault of the Seller in accordance with the terms of the Permission Agreement, the termination event shall constitute a Seller Event of Default for purposes of this Agreement.

15.2 If the Permission Agreement is terminated by the Seller due to the fault of Port d'Ehoala SA in accordance with the terms of the Permission Agreement, the termination event shall constitute a Buyer Event of Default for purposes of this Agreement.

15.3 If the Permission Agreement is terminated in terms of article 18 of the Permission Agreement for reasons of public interest, the Seller shall be compensated for its loss in accordance with the provisions of article 18 of the Permission Agreement and shall have no claim of any nature against the Buyer in terms of this Agreement.

16. TRANSFER OR DECOMMISSIONING

16.1 Upon the expiry of the Term, the Buyer shall elect in its sole discretion, whether:

16.1.1 Port d'Ehoala SA or another nominee of the Buyer will take control of the Facility through a Share Transfer or a transfer of the Seller Assets by the Seller to the Port d'Ehoala SA or another nominee of the Buyer (**Transferee**); or

16.1.2 will take control of the Project Site only, and instruct the Seller to undertake the decommissioning of the Facility and rehabilitation of the Project Site to the condition it was in prior to the development,

construction and operation of the Project (subject to reasonable wear and tear and pre-existing site conditions).

16.2 The Buyer shall notify the Seller of its election at least 12 months prior to the expiry of the Term and in this instance the Buyer shall take transfer of the Seller Assets the Seller Shares free of charge.

16.3 In terms of the return of the Project Site only to the Buyer, the Seller shall ensure that the purpose for which the Project Site may be used or the zoning of the Project Site is restored to the purpose of use or zoning of the Project Site that existed before the relevant authorisation or rezoning was obtained for purposes of the Project, provided that mining zoning shall be subject to the Buyer retaining its mining licence at the time of decommissioning.

16.4 In terms of the handover procedure, the Seller shall co-operate fully with the Buyer and any successor in order to achieve a smooth transfer of Project Site in the manner in which the Buyer or its nominee takes control of the Project and to avoid or mitigate in so far as reasonably practicable any inconvenience or prejudice to the Buyer or its nominee.

16.5 Upon early termination of the Agreement, any right on the part of either the Buyer or the Seller to require the transfer of the Facility shall be exercised by way of written notice to the other Party, such notice to be received within 15 Business Days of termination of the Agreement.

16.6 The Buyer shall notify the Seller within 20 Business Days of receipt or issue of the written notice in Clause 16.5, of whether the Buyer shall take control of the Facility by a transfer of the Seller Assets to the Buyer (or its selected nominee) or a Share Transfer.

16.7 If a Termination Payment is required to be made by the Buyer, until such time as the Seller receives notification of termination and payment in full of the Termination Payment by the Buyer:

16.7.1 if the Buyer elects a transfer of Seller Assets:

(a) the Seller shall have no obligation to procure the release of the liens and encumbrances (including all liens and encumbrances granted pursuant to the Financing Agreements) which may be in place in relation to the Seller Assets; and

(b) the Seller shall remain the owner of the Seller Assets and shall have no obligation to transfer the Seller Assets to the Buyer (or its selected nominee); or

(c) if the Buyer elects a Share Transfer, the Shareholders shall have no obligation to transfer the Seller's Shares to the Port d'Ehoala SA or another nominee of the Buyer.

16.7.2 Upon payment by the Buyer of the Termination Payment and:

(a) the Buyer electing a transfer of the Seller Assets:

(i) the Seller shall procure the release of all liens and encumbrances (including all liens and encumbrances granted pursuant to the Financing Agreements) which may be in place in relation to the Seller Assets, other than any such liens and encumbrances that will be released upon the completion of processing of any filings or other procedural formalities (which filings and formalities the Seller shall procure are performed on the Transfer Date or as soon as practicable thereafter); and

(ii) the Seller shall transfer to Port d'Ehoala SA or another nominee of the Buyer all of the Seller's right, title and interest in the Seller Assets, provided that the Seller shall not be

obligated to transfer any such Seller Assets to the extent that the Seller is prevented from doing so as a result of:

(A) the failure of any Government Authority to provide any Approval, for which proper application has been made, that is required for the transfer of such Seller Assets;

(B) applicable Law, or

(C) as a result of any Change in Law, or

(b) the Buyer elects a Share Transfer, the Shareholders shall transfer to the Port d'Ehoala SA or another nominee of the Buyer all of their right, title and interest in the Seller Shares.

16.7.3 Unless provided otherwise in the Direct Agreement, the Termination Payment shall be paid to the Shareholders or the Seller, as the case may be, in USD on the Transfer Date in immediately available funds to a bank account nominated by the Seller.

16.8 **Share Transfer**

16.8.1 In order to ensure that the Seller shall transfer the Seller Shares to the Port d'Ehoala SA or another nominee of the Buyer free of Liabilities, the Seller agrees that:

(a) from Contract Year 17, it shall notify the Buyer of any Financing Agreements that will still be in full force and effect after the Contract Year 17 and shall submit such Financing Agreements to the Buyer for review.

(b) the Seller shall provide the Buyer with its audited financial statements and management accounts.

(c) The Buyer shall review the audited financial statements and management accounts of the Seller and if it finds that, in its reasonable opinion, the Seller will not be free from the Liabilities upon the expiry of the Term, then the Seller must, within 20 Business Days of receipt of notification from the Buyer of its findings, provide the Buyer with a remediation plan, setting out the measures the Seller intends to take to be free from such Liabilities by the expiry of the Term (the **Remediation Plan**) and the time required to implement the Remediation Plan.

(d) The Buyer is entitled to comment on the efficacy of the Remediation Plan and propose any reasonable amendments thereto, which amendments must be duly and reasonably considered by the Seller.

(i) The Parties shall meet within 15 Business Days' notice by either Party to discuss the amendments required by the Buyer to the Remediation Plan, provided that in the event that the Parties are unable agree such amendments within 14 Days, either Party may refer the matter for Expert determination for determination pursuant to Clause 21.2.

16.8.2 The Seller and the Shareholders warrant that at least two years prior to the Expiry Date, the Seller shall be free of all Liabilities, save for short term liabilities reasonably required for the day-to-day running of the Facility, and hereby indemnify and hold the Buyer or its selected nominee harmless against all loss, liability, damage or expense which the Buyer may suffer as a result of or which may be attributable to any Liability of the Seller, whether actual or contingent, arising after the Share Transfer is finalised.

16.9 **Delivery and Handover of the Facility**

16.9.1 On termination of this Agreement for any reason and the election by the Buyer to take transfer of the Project through a transfer of the Seller Assets, within 10 Business Days prior to the Termination Date, the board and/or management of the Seller (as applicable) shall:

(a) hand over to, and there shall vest in, the Port d'Ehoala SA or another nominee of the Buyer free from all encumbrances, the Seller Assets, which shall be in the state as agreed to by the Parties in Handover Procedures Schedule 10(Handover Procedures) attached hereto, however in the event that this Agreement is terminated prior to the Termination Date, the Seller Assets (as

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applicable) will be handed over to the Port d'Ehoala SA or another nominee of the Buyer in the condition that they are in at that point in time; and

(b) deliver to the Port d'Ehoala SA or another nominee of the Buyer one complete set of:

(i) as-built drawings of the Facility and any manuals relating thereto;

(ii) Operating and Maintenance Procedures, the maintenance and training manuals for the Facility;

(iii) historical performance and maintenance data;

(iv) Facility handover report prepared by the Independent Engineer;

(v) an itemised list of all spare parts; and

(vi) any other relevant documents required by the Buyer to take over, operate and maintain the Facility, including those documents listed in Schedule 10 (Handover Procedures).

(vii) use all reasonable endeavours to procure that the benefit of all manufacturer's warranties in respect of the Seller Assets (as applicable) and are assigned, or otherwise transferred, to the Port d'Ehoala SA or another nominee of the Buyer and ensure that such warranties will be in force despite a change of ownership in the Seller; and

(viii) ensure that provision is made in all relevant contracts of any description whatsoever, to which the Seller is a party, to ensure that the Port d'Ehoala SA or another nominee of the Buyer will be in a position to exercise their rights, and the Seller will be in a position to comply with its obligations under this Clause.

16.9.2 The Seller shall be required to comply with the handover procedures attached hereto as Schedule 10 (Handover Procedures).

16.9.3 The Parties shall agree on the EPC Contract / O&M Contract risk mitigation procedure attached hereto as Schedule 10 (Handover Procedures) within 20 Business Days of the Signature Date.

16.9.4 The Seller shall ensure that critical spare parts (to be included in Schedule 10 (Handover Procedure)) are available for handover to the Buyer at the end of the Term.

16.10 **Survival**

The rights and obligations of the Buyer and the Seller under this Clause 16 and Schedule 6 (Determination of Termination Payments) shall survive termination of this Agreement until such time as all amounts due and owing by the Buyer hereunder have been paid and the Port d'Ehoala SA or another nominee of the Buyer has taken transfer of the Facility in accordance with this Clause.

17. FORCE MAJEURE

17.1 Consequences of Force Majeure

17.1.1 If either Party is rendered wholly or in part unable to perform its obligations hereunder because of a Force Majeure Event, the affected Party shall be excused from the performance affected by the Force Majeure Event, provided that:

(i) the Party affected by the Force Majeure shall give the other Party prompt written notice, without intentional delay, describing the particulars of the event, a general description of the obligations likely to be affected, an estimate of the likely duration of the Force Majeure Event and a statement of the actions to be taken in order to comply with the affected Party's obligations;

(ii) the suspension of performance shall be of no greater scope and of no longer duration than is required to remedy the effect of the Force Majeure; and

(iii) no payment obligations of either Party shall be excused by the Force Majeure Event.

17.1.2 The affected Party shall make all reasonable efforts to prevent and reduce to a minimum and mitigate the effect of any delay occasioned by any Force Majeure Event, including by taking out and maintaining insurance over the Force Majeure Events that are insurable and any recourse to alternate sources of services, equipment and materials.

17.1.3 In the event that the Seller receives compensation, in the form of insurance proceeds or otherwise, for any loss for which it is entitled to relief in terms of this clause, it shall promptly inform the Buyer and the compensation already received by the Seller shall be taken into account in determining and or adjusting the relief provided to the Seller under this clause.

17.1.4 If the Buyer objectively demonstrates that the Seller is not making reasonable effort to minimise and or mitigate the effects of any delay or loss occasioned by the Force Majeure Event as would be expected in accordance with Good Utility Practice, the Buyer shall be entitled to instruct the Seller on what steps to take in relation to the Force Majeure Event, and the costs associated with the actions taken by the Seller will be for the account of the Seller.

17.2 **Effects of a Force Majeure Event on Commercial Operation Date**

17.2.1 If a Force Majeure Event occurs prior to the Commercial Operation Date which results in material damage to or loss of the Facility or a delay that has, or is reasonably likely to have, the effect of delaying the achievement of the Commercial Operation Date:

(a) the Parties shall consult with one another as soon as practicable after the giving of a notice as provided in Clause 17.1.1(i) and the Scheduled COD (or the Long Stop Date, in the event of the occurrence of a Force Majeure Event during the period between the Scheduled COD and the Longstop Date) shall be adjusted taking into account the effect which the affected Party reasonably demonstrates is properly attributable to such Force Majeure Event and the ability of such Party to reschedule its activities (without material additional costs and resourcing) to minimise the overall delays to the Commercial Operation Date; and

(b) if the Parties are unable to agree upon the adjustment to the Scheduled COD within a period of 14 Days from the date the notice referred to in Clause 17.1.1(i) is received, then:

17.2.2 the Dispute shall be referred to an Expert for determination of the adjustment to the Scheduled COD (or the Long Stop Date, in the event of the occurrence of a Force Majeure Event during the period between the Scheduled COD and the Longstop Date); and

17.2.3 until such time as an adjustment to the Scheduled COD has been made, the Scheduled COD (or the Long Stop Date, in the event of the occurrence of a Force Majeure Event during the period between the Scheduled COD and the Longstop Date) shall be extended on a day-for-day basis for the duration of the Force Majeure Event.

17.3 **Effects of a Force Majeure Event after Commercial Operation Date**

17.3.1 If a Force Majeure Event occurs after the Commercial Operation Date which results in damage to or loss of the Facility or affects the ability of the Seller to generate Energy Output:

(a) the Parties shall consult with one another as soon as practicable after the giving of a notice as provided in Clause 17.1.1(i); and

(b) if the Parties are unable to agree upon the adjustment to the Term within a period of 10 Business Days from the date the notice referred to in Clause 17.1.1(i) is received, then:

(i) the Dispute shall be referred to an Expert for determination of the adjustment to the Term; and

(ii) until such time as an adjustment to the Term has been made, the Term shall be extended on a day-for-day basis for the duration of the Force Majeure Event.

17.4 **Force Majeure resulting in termination**

17.4.1 If a Force Majeure Event occurs which prevents a Party from substantially performing its obligations under this Agreement for a period exceeding a cumulative period of 270 Days in any Contract Year (**FM Stay Period**), and if the Facility is fully functional and operational then:

(a) an additional period of 270 Days shall commence following the FM Stay Period (**FM Extension Period**). The Buyer may request of the Seller to transfer the Combined Facility to the Port d'Ehoala SA or another nominee of the Buyer, for a termination payment that covers settlement of Project Debt and 80% of the net book value of the equity invested by the Shareholders (less any equity already re-paid to the Shareholders), which amount shall be no more than the applicable value stated in Schedule 6 (Determination of Termination Payments). The Seller shall not be required to accept such request for termination. During the FM Extension Period, the Buyer shall not be liable to pay Deemed Energy Payments to the Seller.

(b) Upon effluxion of the FM Extension Period, the Buyer may, in its sole and absolute discretion, call on the Seller to transfer the Combined Facility to the Port d'Ehoala SA or another nominee of the Buyer for Termination Payment C that covers settlement of Project Debt and 80% of the net book value of the equity invested by the Shareholders (less any equity already re-paid to the Shareholders), which amount shall be no more than the applicable value stated in Schedule 6 (Determination of Termination Payments). During this post-FM Extension Period, the Buyer shall be liable to pay for Deemed Energy Payments to the Seller.

17.4.2 Any dispute in relation to quantum, arising from Clause 17.4.1 above, shall be referred to an Expert for determination.

17.4.3 If under clause 17.4.1, neither Party calls for termination of this Agreement and transfer of the Combined Facility, then the Force Majeure Event period shall be extended beyond the FM Extension Period, on a day-for-day basis until (i) the Buyer elects to exercise its option under clause 17.4.1, or (ii) the Force Majeure Event ends.

17.4.4 If the Buyer elects to procure an independent power producer to take over and operate the Combined Facility following termination of this Agreement due to a Force Majeure Event, the Seller shall be granted a right of first refusal to take over and operate the Combined Facility.

17.4.5 The Buyer shall not be required to pay the Seller a termination payment should the Seller fail to transfer the Combined Facility on termination of this Agreement as a consequence of an ongoing Force Majeure Event.

18. **CHANGE IN LAW**

18.1 **Notice for Change in Law**

18.1.1 If a Change in Law occurs, either Party shall give the other prompt written notice, without intentional delay, describing the particulars of the Change in Law, a general description of the obligations likely to be affected and a statement of the actions to be taken in order to comply with that Party's obligations under this Agreement.

18.1.2 Each Party shall use all reasonable endeavours to minimise and mitigate the effects of any Change in Law.

18.2 **Consequence of Change in Law**

18.2.1 If, after the Signature Date, there is a Change in Law which will (or will reasonably be expected to) result in increased costs, lost revenue or savings, the Parties shall meet within 20 Business Days of the Party providing written notice to the other of the Change in Law, the Parties shall meet to discuss the amendments required to this Agreement to preserve the Commercial Intent of this Agreement, provided that in the event that the Parties are unable agree such amendments within 20 Business Days, either Party may refer the dispute to an Expert for determination (such amendments following Agreement or determination thereof, being the **Revised Commercial Terms**).

18.2.2 Within 20 Business Days following this Agreement of the Parties or determination by the Expert (as the case may be) of the Revised Commercial Terms, each Party shall provide written notification to the other Party as to whether the Party accepts or rejects the Revised Commercial Terms, provided that if a Party fails to provide notification to the other Party within such period, the Revised Commercial Terms shall be deemed to be accepted by such Party.

18.2.3 If the Buyer rejects the Revised Commercial Terms, such rejection shall be considered a Buyer Event of Default for all purposes under this Agreement. If the Seller rejects the Revised Commercial Terms, such rejection shall be considered the Seller Event of Default for all purposes under this Agreement.

19. GENERAL

19.1 Access

19.1.1 Upon the occurrence of an emergency, the Buyer shall have the right to immediately access the Project Site and the Facility and provide the Seller with instructions in respect of the operation of the Facility that have the purpose of safeguarding persons or property or saving lives.

19.1.2 In all other instances, the Buyer shall have the right from time to time, on no less than 48 hours written notice to designate not more than four of the Buyers representatives who shall be entitled to have access to the Project Site at reasonable times for the purposes of viewing the Facility and verifying the Seller's compliance with its obligations under this Agreement, provided that the Buyer shall ensure that its representatives shall comply with all of the Project Site's health and safety rules, precaution and standards, and any other reasonable requirements of the Seller and its contractors and shall not interfere with the construction or operation of the Facility.

19.2 Taxes, Fees and Levies

19.2.1 Each Party shall be responsible for payment of royalties, taxes, fees, or assessments levied against its property or other assets or profits by any government authority as may be provided for by any Law, and shall settle such levies without attempting to recover them from the other.

19.2.2 All Environmental Credits and Environmental Offsets (in relation to carbon tax), relating to the Project, shall be for the sole benefit of the Buyer.

19.3 Insurance

19.3.1 **General**

(a) The Seller shall (and the Seller shall procure that each Contractor shall) at its sole cost and expense, to the extent available at reasonable commercial cost and on reasonable commercial terms in the African insurance market (Acceptable Terms), obtain and maintain insurances set out in Schedule 7 (Insurance Requirement) in full force and effect in accordance with the requirements of:

(i) applicable Law;

(ii) this Clause 19.3 and Schedule 7 (Insurance Requirement);

(iii) Good Utility Practice; and

(iv) the Financing Agreements.

(b) The Seller warrants to the Buyer that it shall at all relevant times observe all of the conditions of its insurance policies and all of the insurance provisions contained in this Agreement.

(c) The Seller shall furnish to the Buyer copies of insurance policies effecting the insurance required to be taken out and maintained by that Party and/or the Contractors and each Party may request the other Party from time to time to provide proof that all relevant premiums have been paid and that the relevant policy or policies remain in existence.

19.3.2 **Unavailability of insurance on Acceptable Terms**

Subject to the requirements of the Financing Agreements, to the extent that any Insurance is not available on Acceptable Terms the Seller shall:

(a) promptly notify the Buyer in writing of such circumstances;

(b) continue to monitor the market for such insurance on a quarterly basis and promptly report the results of such monitoring to the Buyer; and

(c) procure such insurance in accordance with Schedule 7 (Insurance Requirement) to the extent that it subsequently becomes available on Acceptable Terms,

provided that, for the avoidance of doubt, during any period in which any such insurance is not in full force and effect, the Seller shall be solely responsible for any costs, losses, damages, liabilities and/or expenses to the extent that such costs, losses, damages, liabilities and/or expenses would have been reasonably expected to be covered by the relevant insurance had it been in full force and effect.

19.3.3 **Application of Proceeds**

(a) Following the Effective Date and during the Term, and subject to the requirements of the Financing Agreements and any rights or remedies thereunder, the Seller shall apply any and all insurance proceeds (other than proceeds arising from delay in start-up or business interruption insurance) received in connection with the damage to or loss of the Buyer towards the repair, reconstruction or replacement of the Facility.

(b) If the Lenders receive insurance proceeds in relation to an insurance claim that would (but for requirements of the Lenders) be required to be used by the Seller for the purposes of rebuilding, repairing or reinstating the Facility and the Lenders exercise any right under the Financing Agreements to apply such insurance proceeds to the prepayment of the debt:

(i) the Seller shall notify the Buyer immediately upon becoming aware of the Lenders' decision to exercise such right; and

(ii) if following such prepayment, the Parties determine that the Project is no longer commercially feasible, the Parties may with immediate effect terminate this Agreement. Any Dispute under this Clause shall be referred to an Expert for determination.

19.4 **Liabilities**

19.4.1 **Limitation of Liability**

Neither of the Parties shall be liable to the other Party for any indirect, consequential, incidental, punitive or exemplary damages or losses of the other Party save to the extent that this liability arises as a result of (i) any of the indemnity obligations pursuant to this Agreement, (ii) breach of any applicable anti-bribery and corruption Laws, (iii) the fraud, wilful misconduct or gross negligence of such Party; and (iv) breach of any applicable Law.

19.4.2 **Indemnities**

(a) **Indemnity for death or personal injury and/or damage to property**

The Seller hereby indemnifies, defends and holds harmless the Buyer and its respective Shareholders, directors, officers, employees, representatives, agents, contractors and licensees (for purposes of this Clause 19.4.2(a) each an indemnified party) from and against all costs, losses, damages, claims, liabilities and/or expenses of any kind incurred or suffered by the indemnified party and its respective directors, officers, employees, representatives, agents, contractors and licensees in respect of damage to or loss of any property, real or personal or any death or injury to any such indemnified party who is a natural person caused by, or arising from or in any manner connected with a negligent act or omission of the Seller, except to the extent that any such costs, losses, damages, claims, liabilities and/or expenses of any kind are caused by, or arise from or in connection with the fraud or wilful misconduct or breach of this

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Agreement by the indemnified party or the failure of the indemnified party to take reasonable steps in mitigation thereof. In respect to damage to property pursuant to this clause, the Seller shall indemnify the Buyer for any costs, loss or damages up to the greater of i) USD20 000,000 and ii) the maximum limit of Indemnity under the Seller's general or public liability insurance cover.

(b) **Indemnity for Third Party Liability**

The Seller shall indemnify, defend and hold harmless the Buyer and its respective directors, officers, employees, representatives, agents, contractors and licensees (for purposes of this Clause 19.4.2(b), each an indemnified party) from and against all costs, losses, damages, claims, liabilities and/or expenses of any kind incurred or suffered by such indemnified parties in respect of any loss of or damage to property of any third party or death or injury to any third party who is a natural person to the extent caused by the Seller and/or its respective directors, officers, employees, representatives, agents, contractors and licensees and arising out of a negligent act or omission of the Seller, except to the extent such losses, damages, injury or death is attributable to fraud or wilful misconduct or breach of this Agreement by the indemnified party or the failure of the indemnified party to take reasonable steps in mitigation thereof. For purposes of this clause, the term third party shall mean any person not falling within the definition of indemnified party in this Clause 19.4.2 (and shall not include the Seller, the Buyer or any of their respective directors, officers, employees, representatives, agents, contractors or licensees).

(c) **Indemnity for liability under applicable Law**

Notwithstanding anything to the contrary in this Agreement, the Seller shall indemnify, defend and hold harmless the Buyer and its respective directors, officers, employees, representatives, agents, contractors and licensees (for the purposes of this Clause 19.4.2(c), each an indemnified party) from and against all costs, expenses, liabilities and/or losses, claims, suits and/or proceedings of any kind incurred or suffered by such indemnified party pursuant to applicable Law as a result of the negligent activities or omissions of the Seller, including any penalties imposed pursuant to applicable Law and any clean-up and/or remedial costs resulting from or arising out of pollution or contamination howsoever occurring as a result of the activities of the Seller except to the extent such costs, expenses, liabilities and/or losses, claims, suits and/or proceedings are caused by, or arise from or in connection with the fraud, wilful misconduct or breach of this Agreement by the indemnified party or the failure of the indemnified party to take reasonable steps in mitigation thereof.

20. REPRESENTATIONS AND WARRANTIES

20.1 Seller Representations and Warranties

The Seller hereby represents and warrants to the Buyer as at the Signature Date as follows:

20.1.1 it is a limited liability company, duly incorporated and validly existing under the Laws of Madagascar and has taken all necessary actions to authorise its execution of and to fulfil its obligations under this Agreement;

20.1.2 it has the technical and financial resources, skill, experience and capability to undertake the Project;

20.1.3 its obligations under this Agreement and its rights and obligations under this Agreement are legal, valid and binding and enforceable against it, in accordance with the terms of this Agreement;

20.1.4 the execution and performance of this Agreement do not and will not contravene any provision of its memorandum or articles of association or memorandum of incorporation, or any order or other decision of any responsible authority or arbitrator that is binding on it;

20.1.5 all Seller Authorisations required for the conduct of the Project are in full force and effect, save for any Authorisations which are not required under the Laws of Madagascar to be obtained by the Signature Date, provided that the Seller warrants that it knows of no reason (having made all reasonable enquiries in this regard) why any such Authorisation will not be granted on reasonable terms by the time it is required to obtain such Authorisation;

20.1.6 no litigation, arbitration, investigation or administrative proceeding is in progress or, to the best of the knowledge of the Seller (having made all reasonable enquiries), threatened against it or any of the Contractors, which is likely to have a material adverse effect on the ability of the Seller to conduct the Project;

20.1.7 it has not committed or suffered an Insolvency Event;

20.1.8 all information disclosed by or on behalf of the Seller to the Buyer and, in particular, during the project development phase as contemplated in the Project Development Agreement preceding this Agreement, is true, complete and accurate in all material respects;

20.1.9 all intellectual property used by the Seller in respect of the Facility is owned and/or licensed for use by the Seller; and

20.1.10 no default or event of default has occurred and is continuing and no default or event of default shall occur as a result of the performance by Seller of its obligations under this Agreement.

20.2 **Buyer Representations and Warranties**

The Buyer represents and warrants to the Seller as at the Signature Date as follows:

20.2.1 it is a limited liability company, duly incorporated and validly existing under the Laws of Madagascar and has taken all necessary actions to authorise its execution of and to fulfil its obligations under this Agreement;

20.2.2 its obligations under this Agreement and its rights and obligations under this Agreement are legal, valid and binding and enforceable against it, in accordance with the terms of this Agreement;

20.2.3 the execution and performance of this Agreement does not and will not contravene any provision of its memorandum or articles of association or memorandum of incorporation, or any order or other decision of any responsible authority or arbitrator that is binding on it;

20.2.4 all Buyer Authorisations required for the conduct of the Project are in full force and effect, save for any Authorisations which are not required under the Laws of Madagascar to be obtained by the Signature Date, provided that it warrants that it knows of no reason (having made all reasonable enquiries in this regard) why any such Authorisation will not be granted on reasonable terms by the time it is required to obtain such Authorisation;

20.2.5 no litigation, arbitration, investigation or administrative proceeding is in progress or, to the best of its knowledge (having made all reasonable enquiries), threatened against it or its holding company, which is likely to have a material adverse effect on the ability of the it, or the Buyer, to conduct the Project;

20.2.6 it has not committed or suffered an Insolvency Event;

20.2.7 all information disclosed by or on behalf of it to the Seller, is, to the best of its knowledge, true, complete and accurate in all material respects; and

20.2.8 no default or event of default has occurred and is continuing and no default or event of default shall occur as a result of the performance by it, or by the Buyer, of its obligations under this Agreement.

21. DISPUTE RESOLUTION

21.1 Negotiations

21.1.1 In the event of any dispute, controversy or claim between the Parties, arising out of or in connection with this Agreement, including any question regarding its existence, termination, validity or any breach thereof (**Dispute**), either Party may notify the other Party of the Dispute by way of a written notice, which shall identify the Dispute and contain sufficient information to enable the other Party to understand the nature of the Dispute.

21.1.2 Except as otherwise provided in this Agreement, within 10 Business Days of the date of provision of such notice of Dispute, the Parties shall attempt to resolve such Dispute in good faith through

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negotiation between the representatives of each Party, and these representatives shall have the necessary authority to make binding decisions. If such individuals are unable to reach an agreement within such Business Days, or over a longer period, if the Parties have so agreed, save where Clause 21.2 applies either Party may refer the Dispute to arbitration in accordance with Clause 21.3.

21.2 **Expert Determination**

21.2.1 Where a Dispute arises between the Parties under any Clause that provides for determination by reference to an Expert, either Party may refer the Dispute for determination by an independent expert agreed upon by the Parties (the **Expert**). A Party requiring the determination of a Dispute by an Expert must first give the other Party written notice of the request for such determination. Upon provision of such request, the other Party cannot seek to commence arbitration in respect of those proceedings other than in accordance with Clause 21.2.9.

21.2.2 The Expert shall be selected by agreement of the Parties within 10 Business Days of provision of the notice requesting the submission of the Dispute to an Expert. The Expert shall be independent and impartial and shall not be a representative, employee or hired contractor, nor a former representative, employee or contractor hired by either of the Parties. If the Parties are unable to reach an agreement on an Expert within such 10 Business Day period, then the Parties must request:

(a) the then President of the Law Society of England and Wales (for disputes involving legal matters or interpretation);

(b) the then President of the Engineering Council of the UK (for disputes involving construction or engineering issues); or

(c) the then President of the Institute of Chartered Accountants in England and Wales (for disputes involving financial, economic or accounting issues in which case the person must have sufficient commercial, financial or economic experience),

to appoint the Independent Expert. To the extent that the Parties cannot agree on the nature of the dispute, the dispute shall be determined in accordance with the provisions of Clause 21.3.

21.2.3 The Expert's appointment commences upon the provision to the Parties of a written acceptance of such appointment from the Expert and if such acceptance is provided at different times to the Parties, the time at which it was first provided to a Party.

21.2.4 Where a Dispute is referred to an Expert for determination such proceedings shall be conducted in accordance with the ICC Rules for the Administration of Expert Proceedings.

21.2.5 Each Party will provide (or procure that others provide) the Expert with such assistance and documents as the Expert reasonably requires for the purpose of reaching a decision.

21.2.6 All matters concerning the process and result of the determination by the Expert shall be kept confidential among the Parties and the Expert.

21.2.7 The Expert shall act as an expert and not as an arbitrator and, for the avoidance of doubt; the legislation relating to commercial arbitration does not apply to such proceedings.

21.2.8 Following expiry of the 10 Business Day period from the date of appointment of the Expert, as set out in Clause 21.2.3 during which the receiving Party may make submissions, the Expert shall provide a decision in writing within 30 Business Days, unless the Expert reasonably determines that additional time is required in order to give adequate consideration to the issues raised. In such case, the Expert shall state in writing his reason for believing that additional time is required and shall specify the additional period required, which period shall not exceed 30 Business Days.

21.2.9 Save in the event of manifest error or fraud, and under the circumstances in Clause 18.2.3, the decision of the Expert regarding a Dispute shall be binding on the Parties unless either Party refers the Dispute to arbitration in accordance with Clause 21.3 within 15 Business Days of the decision of the Expert.

21.2.10 Each Party shall bear the fees, costs and expenses for the Expert equally, as well as expenses incurred by such Party in preparing materials to be provided or presented to the Expert, and in making presentations to the Expert.

21.2.11 All proceedings before the Expert shall be conducted in the English language.

21.3 **Arbitration**

21.3.1 Any Dispute arising out of or in connection with this Agreement that has not been resolved following the procedures set forth in Clauses 21.1 and 21.2 shall (regardless of the nature of the Dispute but without prejudice to the provisions of this Agreement requiring any matter to be referred to an Expert for final determination) be referred to arbitration.

21.3.2 The Parties hereby consent to submit any Dispute for settlement by arbitration pursuant to the rules of arbitration in accordance with the rules of International Chamber of Commerce International Court of Arbitration (**ICC**). If the Parties fail to select an arbitrator within 10 Business Days of the matter being referred to arbitration, ICC shall select the arbitrator.

21.3.3 The seat and place of arbitration shall be London, England. The Parties may, on agreement, select an alternative place for the Arbitration.

21.3.4 The language of the arbitration shall be English.

21.3.5 The Parties and the arbitrator will keep confidential and not use for any collateral or other purpose not related to the resolution of the Dispute the subject matter of the arbitration and all information (whether given orally, in writing or otherwise) produced for, or arising in relation to, the arbitration, including any award arising out of it, except insofar as is necessary to implement and enforce any award or otherwise as required by Law.

21.3.6 If there is any conflict between this Agreement and the ICC Rules, this Agreement shall prevail.

21.3.7 The arbitrator's award shall be final and binding upon the Parties and (to the fullest extent permitted by Law) the Parties waive their right to any form of appeal or to other similar recourse to a competent court of law in England or any other jurisdiction. The Parties further undertake to carry out without delay the provisions of any arbitration award or decision, and each agrees that any such award or decision may be enforced by any court or tribunal having jurisdiction.

21.3.8 The arbitrator shall have the right and authority to decide on the costs of arbitration.

21.3.9 Nothing in this clause 21.3 shall preclude the Parties from seeking injunctive relief from a court of competent jurisdiction.

22. **CONFIDENTIALITY**

22.1 The Parties will not disclose to any third party (excluding as permitted pursuant to this Clause 22:

22.1.1 the details of this Agreement and the information handed over to the other Party during the course of negotiations, as well as the details of the transactions contemplated in this Agreement; and

22.1.2 all information relating to the business or the operations and affairs of the Parties,

(together **Confidential Information**), without the prior written consent of the other Party, provided that each Party may disclose such Confidential Information:

22.1.3 to its employees, officers, representatives, advisers, agents or subcontractors who:

(a) need to know such Confidential Information for the purposes of carrying out such Party's obligations under this Agreement;

(b) are aware that the Confidential Information should be kept confidential;

(c) are aware of the disclosing Party's undertaking in relation to such information in terms of this Agreement; and

(d) have been directed by the disclosing Party to keep the Confidential Information confidential and have undertaken to keep the Confidential Information confidential; and

22.1.4 to Lenders or prospective lenders of the Project.

22.2 Each Party shall ensure that its employees, officers, representatives, advisers, agents or subcontractors to whom it discloses such information comply with this Clause 22.

22.3 The obligations of non-disclosure under this Agreement do not extend to information that:

22.3.1 is disclosed to a receiving Party in terms of this Agreement but at the time of such disclosure, such information is in the lawful possession or control of that Party and not subject to an obligation of confidentiality;

22.3.2 is or becomes public knowledge, otherwise than pursuant to a breach of this Agreement by the Party who disclosed such Confidential Information; and

22.3.3 is required by the provisions of any law, or regulation, or during any proceedings, the Party required to make the disclosure has taken all reasonable steps to oppose or prevent the disclosure and has consulted with the other Party prior to making such disclosure.

23. MISCELLANEOUS PROVISIONS

23.1 Notices

23.1.1 The Parties choose the following addresses for the services of any written notice or legal proceedings in connection with this Agreement:

(a) the Seller:

address	c/o Axis Fiduciary Ltd
	2nd Floor, The AXIS
	26 Bank Street
	Cybercity Ebene
	Mauritius
	72201
email	matt.tilleard@crossboundary.com
	legal@crossboundary.com
and marked for the attention of	Matthew Tilleard

(b) the Buyer:

address	Immeuble ASSIST
	Lot N°35 5è étage
	Ivandry Antananarivo 101
	Madagascar
email	david-alexandre.tremblay@riotinto.com

and marked for the attention of: David-Alexandre Tremblay

23.1.2 The notice shall be deemed to have been duly given:

(a) five Business Days after posting (10 Business Days if the address is not in Madagascar), if posted by registered post (airmail, if available) to the Party's address in terms of Clause 23.1.1;

(b) on delivery, if delivered to the Party's physical address in terms of either Clause 23.1.1 before 17h00 on a Business Day, or if delivered on a Business Day but after 17h00 on that Business Day or on any Day other than a Business Day, it will be deemed to have been given at 08h30 on the first Business Day after it was delivered;

(c) if sent to the Party's then e-mail address, only if the recipient Party has replied to the email sent by the sender Party or the sender has received an acknowledgment of receipt of the same, in which case, deemed service of the email shall be on the date of receipt of the email in reply or of the acknowledgment of receipt, as the case may be.;

unless the addressor is aware, at the time the notice would otherwise be deemed to have been given, that the notice is unlikely to have been received by the addressee through no act or omission of the addressee.

23.1.3 A Party may change that Party's address or e-mail address for this purpose by notice in writing to the other Party, such change to be effective only on and with effect from the 5th Business Day after the giving of such notice.

23.1.4 Notwithstanding anything to the contrary herein contained, a written notice or communication actually received by a Party shall be an adequate written notice or communication to that Party notwithstanding that it was not sent to or delivered at that Party's chosen address in Clause 23.1.1.

23.2 **Entire Contract**

This Agreement contains all the provisions agreed on by the Parties with regard to the subject matter of this Agreement and the Parties waive the right to rely on any alleged provision not expressly contained in this Agreement.

23.3 **No Stipulation for the Benefit of a Third Person**

Save as is expressly provided for in this Agreement, no provision of this Agreement constitutes a stipulation for the benefit of a third person which, if accepted by the person, would bind any Party in favour of that person.

23.4 **No Representations**

A Party may not rely on any representation which allegedly induced that Party to enter into this Agreement, unless the representation is recorded in this Agreement.

23.5 **Variation, Cancellation and Waiver**

No contract varying, adding to, deleting from or cancelling this Agreement, and no waiver of any right under this Agreement, shall be effective unless reduced to writing and signed by or on behalf of the Parties.

23.6 **Indulgences**

The grant of any indulgence, extension of time or relaxation of any provision by a Party under this Agreement shall not constitute a waiver of any right by the grantor or prevent or adversely affect the exercise by the grantor of any existing or future right of the grantor.

23.7 **Assignment and Delegation**

23.7.1 Subject to the provisions of Clause 8.5, a Party may not assign any or all of that Party's rights or delegate any or all of that Party's obligations under this Agreement without the prior written consent of the other Party.

23.7.2 Notwithstanding the foregoing provision, for the purpose of financing the Project, it is expressly acknowledged and agreed by the Buyer that the Seller may cede to, or grant a security interest in favour of, the Lenders of all of its rights and interests under or pursuant to this Agreement. The Seller shall notify the Buyer of the creation of such security over its rights and interests under this Agreement.

23.8 **Applicable Law**

This Agreement shall be governed, interpreted and implemented by English Law.

23.9 **Costs**

23.9.1 Each Party shall bear that Party's own legal costs and disbursements of and incidental to the negotiation, preparation, settling, signing and implementation of this Agreement.

23.10 **Independent Advice**

23.10.1 Each of the Parties hereby respectively agrees and acknowledges that:

(a) it has been free to secure independent legal advice as to the nature and effect of each provision of this Agreement and that it has either taken such independent legal advice or has dispensed with the necessity of doing so; and

(b) each provision of this Agreement (and each provision of the Annexes) is fair and reasonable in all the circumstances and is part of the overall intention of the Parties in connection with this Agreement.

23.11 **Signature in Counterparts**

This Agreement may be executed in counterparts, each of which shall be deemed to be an original and which together shall constitute one and the same Agreement.

SIGNATURE PAGE

DocuSigned by:
David-Alexandre Tremblay
4F966F63328A446...

For and on behalf of:

QIT MADAGASCAR MINERALS S.A.

Name: David-Alexandre Tremblay

Office: Directeur Général Opération QMM

(who warrants his authority)

DocuSigned by:
Ny Fanja Rakotomalala
2664AFCAFBEE40E...

For and on behalf of:

QIT MADAGASCAR MINERALS S.A.

Name: Ny Fanja Rakotomalala

Office: MD

(who warrants his authority)

DocuSigned by:
Matthew Tilleard
7449BACE3B1A468...

For and on behalf of:

CROSSBOUNDARY ENERGY MADAGASCAR S.A

Name: Matthew Tilleard

Office: Director

(who warrants his authority)

SCHEDULE 1
SCHEMATIC DIAGRAM / AERIAL VIEW OF THE PROJECT SITE ON THE PROPERTY

Figure 1: Site layout schematic of Solar PV Facility, Wind Facility and substation as located on the Port d'Ehoala concession.

Figure 2: BESS layout schematic at Mandena Mine substation

SCHEDULE 2
FUNCTIONAL SPECIFICATION OF PROJECT AND INTERCONNECTION FACILITIES

1. General functional specifications of the Project and Interconnection Facilities:

1.1 The Project shall use an east-west fixed-tilt ground-mounted solar photovoltaic (PV) technology with a minimum accumulated installed nominal capacity of 8.014MWp at Standard Test Conditions ("STC"), connected to string inverters/ transformer stations.

1.2 The Project shall include a Battery Energy Storage System (BESS) with a capacity of 8.25MW / 7.9MWh usable power and energy at start of life. The BESS will be sized and controlled to ensure the thermal power plant can run with one generator online while maximising the solar PV output.

1.3 The project shall utilise four (4) Wind Turbine Generators, each with a derated generation capacity of at least 3MW to deliver a combined installed nominal capacity of 12MWp at Standard Test Conditions (STC). The turbines will have a hub-height of 67m and turbine rotor diameter of 115m and each will have a concrete ballast foundation.

1.4 A hybrid grid control system shall be provided to ensure optimal and safe integration of the Facility with the Buyer's existing electrical network and thermal power plant.

1.5 The Project shall be designed in such a way that the maximum power output (active power) from the Solar PV Facility (Maximum Capacity), measured at the Delivery Point and expressed in AC power capacity, shall achieve at least the Contracted Capacity of 6.3MW_{AC} for Solar PV and 12MW for the Wind Facility, net of auto-consumption and electrical losses up to the Delivery Point.

1.6 The Project shall be located on the Site and shall be designed for a minimum 20 years continuous performance of its intended function under normal operating conditions based on regular scheduled maintenance being performed (Design Life). The Plant shall be designed so as to ensure that it can be dissembled.

1.7 The Interconnection Facilities shall include the connecting of the Solar PV and Wind Facilities to the QMM network via the 33kV line between Port d'Ehoala and the QMM mine, and the BESS facility to the 11 kV or 33kV substation at the QMM Mandena Mine. The connection point of the BESS facility shall be agreed by the Parties prior to installation of the BESS facility.

1.8 The design, installation and operation of the Facilities shall comply with the "Network Technical Rules" and "DER Performance Requirements", a set of power network technical rules and standard specifications developed by the Buyer in collaboration with the Seller for the Project, jointly the Network Requirements.

1.9 The Project shall be designed, manufactured, configured and constructed in such a way that it shall achieve high performance, availability and reliability standards. The designs, components and materials to be used shall be of proven quality and track record.

1.10 All Material and equipment employed at the Facility shall conform to the prescribed international standards and all applicable laws, codes and regulations.

1.11 All switchgear, circuit breakers and AC cables shall comply with international, country and applicable QMM and Rio Tinto Global Standards. The circuit breakers used for the integration of the BESS shall be the same make and model as the circuit breakers used in the Buyer's existing switchboard.

1.12 All material and equipment shall be supplied by leading manufacturers that are capable of providing material and equipment in accordance with good industry practice. Special care shall be taken to choose equipment that is backed by reliable servicing and ease of maintenance.

1.13 Normal operation of the Facility shall not create risks to operations or maintenance personnel. The Facility shall incorporate all safety elements required by applicable national and local utility regulations. Meter Specifications.

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SCHEDULE 3
METER SPECIFICATIONS

1. **POWER QUALITY METER**

1.1 The Seller shall, at its expense, procure, supply, install, own, operate and maintain at the Buyer's side of the Delivery Points the "Main Meter" and the "Check Meter"

2. **Capabilities of Meters**

2.1 The Metering System shall be capable of measuring and recording the following parameters in accordance with applicable Laws and the Network Technical Requirements:

2.1.1 Net Energy Output (measured in kWh);

2.1.2 Reactive Energy Output (measured in kvarh);

2.1.3 Instantaneous voltage, current and power factor;

2.1.4 Frequency;

2.1.5 Total Net Energy Output and Reactive Energy Output since last reset;

2.1.6 Net Energy Output and Reactive Energy Output for the billing period;

2.1.7 Number of resets since commissioning.

2.2 The Main Meter shall be IEC 61000-4-30 Class A compliant.

2.3 The Metering System shall be designed and operated so as to achieve the accuracy of measurement which is technically and economically feasible consistent with Good Utility Practice but in any event so as to achieve an accuracy of measurement within the range permitted under standard IEC 62053.22 Class 0.2S.

2.4 The Metering System shall also have the capability to download and transmit such real time data to a Supervisory Control and Data Acquisition (SCADA) system, in a form and format suitable for SCADA.

2.5 The Buyer shall be entitled to, and the Metering System shall enable the Buyer to, access the Metering System and its data remotely at any time and without any notice.

2.6 The Buyer's preferred meter is Enermax (**Buyer's Preferred Meter**). The Seller shall, where commercially and technically viable, use the Buyer's Preferred Meter for both the Main Meter and Check Meter. Where this option is not considered to be commercially or technically viable, the Seller may propose an alternative and equivalent meter to the Buyer. For purposes of this provision, in considering the commercial viability of the Buyer's Preferred Meter, the difference in the cost saving for the Seller should be material and not *de minimis* in nature.

3. Metering, meter reading, calibration and testing shall be carried out in accordance with the Network Technical Requirements (DER).

4. **Metering Single Line Diagram**

4.1 The following Single Line Diagram illustrates the Interconnection Facilities and associated Metering System.

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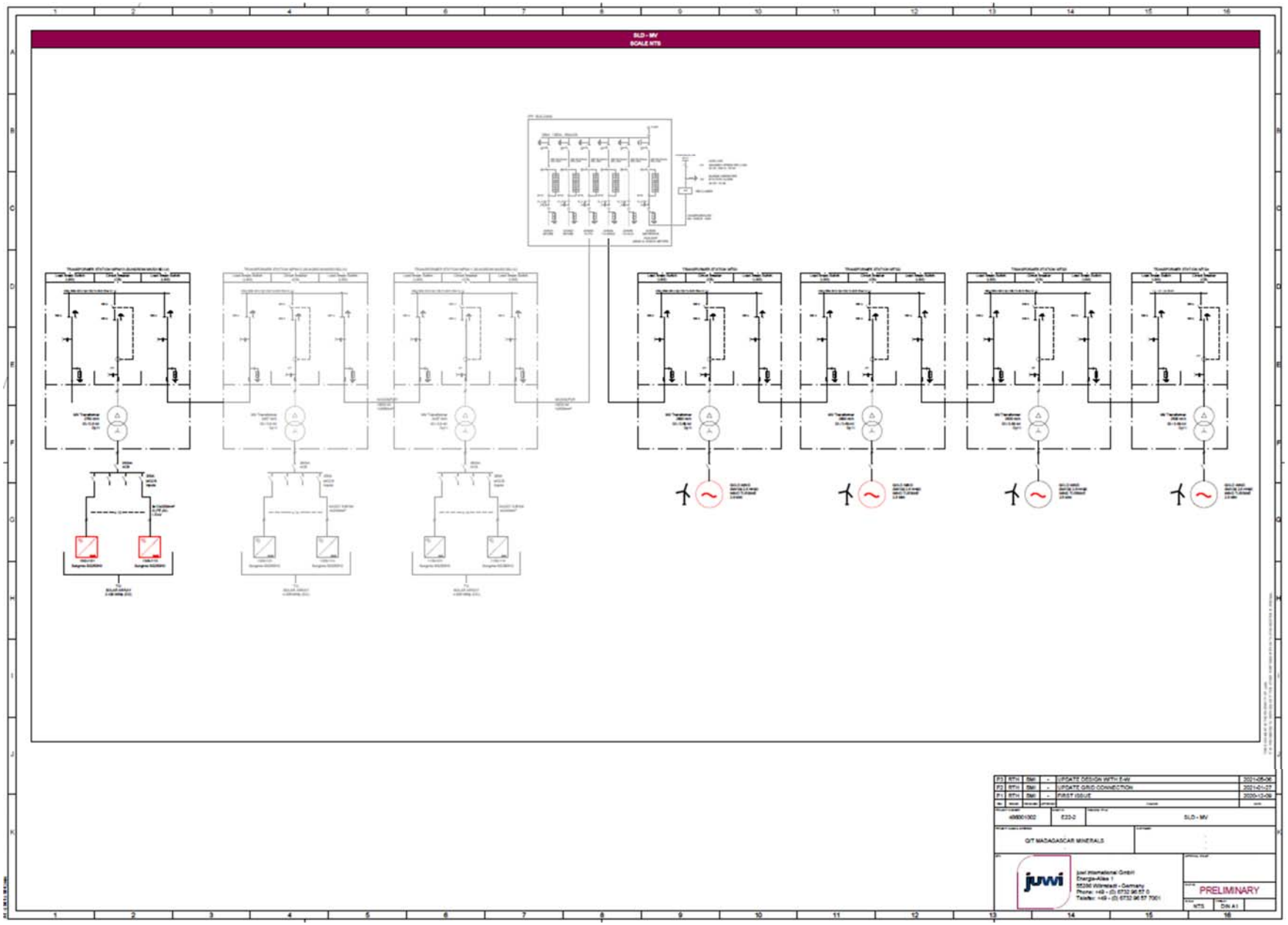

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SCHEDULE 4
TESTING REGIME

1. Pre-Commissioning Tests

1.1. The Seller shall ensure that all physical inspection and theoretical calculations, required to ensure that the Facility is in a safe operating condition for commissioning purposes, are conducted prior to commencement of testing.

1.2. The Seller will submit to the Buyer checklists for visual inspections for each component being inspected as part of pre-commissioning Tests.

1.3. The Facility shall be subject to functional tests which should include confirmation that components operate within the expected parameters as well as respond correctly to transient conditions. The tests shall include the functional tests under IEC 62446.

2. Commissioning Tests

2.1. The Seller shall undertake testing of the Facility to demonstrate compliance with all applicable performance requirements as stipulated in the Distributed Energy Resource (DER) Performance Requirements and this Renewable Energy Services Agreement. Such compliance shall be confirmed and accepted by the Buyer upon review of the Facility's as-built network model, a report containing simulations illustrating compliance with the various aspects of the DER Performance Requirements, and results from physical tests conducted on the Facility.

3. Performance Tests

3.1. A Capacity Test shall be performed as per IEC 61724-2 guideline. The Capacity shall be demonstrated according to both:

3.1.1. Calculation according to the Visual Inspection Test records, Commissioning Test records and as-built documentation including network integration and electrical loss studies; and

3.1.2. Correlation of measured ambient conditions and Net Energy Output which confirm whether the Facility would be able to generate the Installed Capacity at Standard Test Conditions

3.2. The Performance Ratio Test shall be conducted in accordance with a weather-corrected method. The reporting and evaluation period shall be 5 consecutive days.

3.2.1. The Seller shall submit a detailed procedure for the Testing and calculation of the Performance Ratio for review and approval by the Buyer. The procedure shall address, amongst other things, the following:

3.2.1.1. Validity of data points, considering minimum irradiance, negative irradiance, availability of equipment and Facility, outliers in the dataset, etc;

3.2.1.2. Validity of the recording period, considering the number of valid data points in the recording period;

3.2.1.3. Measurement and proof of the contribution of auxiliary and other electrical losses, availability, curtailment, degradation and soiling; and

3.2.1.4. Averaging and aggregating of measured data from instruments.

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3.2.2. The Performance Test Report shall provide details of raw data processing, including:

3.2.2.1. Identification of invalid data;

3.2.2.2. Instrument used to record the invalid data;

3.2.2.3. Reasons the data is considered invalid;

3.2.2.4. How the invalid data has been treated; and

3.2.2.5. Final data set used for the purpose of performance testing

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SCHEDULE 5
FORM OF FACILITY COMPLETION FORM

On the letterhead of [●]]

[Date]

QIT MADAGASCAR MINERALS S.A.

By e-mail: [●]

Attention: **[●]**

Facility Completion Form

Dear Sirs,

1. We refer to the Renewable Energy Services Agreement entered into between [●] and QIT Madagascar Minerals S.A. on **[**insert date**]** (the **RESA**).

2. All capitalised terms in this notice (**Notice**) shall, unless separately defined herein, bear the meaning ascribed to them in the RESA.

3. This Notice is the Facility Completion Notice as defined in and required to be issued in terms of the RESA.

4. We hereby represent and warrant as at the date hereof the following:

4.1 the Facility is compliant with the Network Requirements;

4.2 the Facility is compliant with Schedule 1 (Schematic diagram / aerial view of the Project Site on the Property) and Schedule 2 (Functional Specification of Project and Interconnection Facilities) of the RESA;

4.3 the Facility has passed the tests and has been successfully commissioned in accordance with Schedule 4 (Testing Regime) of the RESA and the Authorisations;

4.4 the Facility has a mechanism installed to limit the Capacity at the Delivery Point to less than the Maximum Capacity for that Delivery Point;

4.5 the Achieved Capacity / Achieved Performance Ratio of the Facility, measured at a Delivery Point, is [●]%;

4.6 the DC Installed Capacity of the Facility is [●] MW. The AC Installed Capacity of the Facility is [●] MW; and

4.7 the reference weather station has been installed at the location agreed in the RESA, has been successfully commissioned and is capable of performing its functions as set out in the RESA.

5. The Facility is ready to commence commercial operation and to deliver Energy to the Buyer.

Yours faithfully

[NAME OF BUYER'S ENGINEER]

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SCHEDULE 6
DETERMINATION OF TERMINATION PAYMENTS

1. CONSEQUENCES OF TERMINATION IN RESPECT OF A BUYER EVENT OF DEFAULT

1.1 The Buyer shall be required to pay a termination payment (**Termination Payment A**) to the Seller that shall cover:

1.1.1 settlement of the Project Debt, of which the payment for the principal amount of outstanding debt shall be no more than the applicable value stated in the table in paragraph 5 below;

1.1.2 payment of the amount required to achieve at the Termination Date the same nominal equity IRR in USD terms for each of those Shareholders who Invested Equity into the Seller, as is forecast to be achieved if the PPA were to continue for the full Term, subject to the actual financial performance of the Facility (as calculated in the manner described in paragraph 4 below), which calculation shall include any investment cash flows received by Shareholders from the Seller up to the point of Termination; and

1.1.3 Contractor Costs, less, to the extent it is a positive amount, the aggregate, as at the Termination Date, of all credit balances on any bank accounts held by or on behalf of the Seller on the Termination Date and the value of any right of the Seller or the Lenders to receive any insurance proceeds or payments pursuant to letters of credit and bank guarantees and sums due and payable from the Contractors or the suppliers and any other third parties; and

1.1.4 Rehabilitation provisions and costs.

2. CONSEQUENCES OF TERMINATION IN RESPECT OF A SELLER EVENT OF DEFAULT IF TERMINATION OCCURS AFTER THE COMMERCIAL OPERATION DATE

2.1 The Buyer shall be required to pay a termination payment (**Termination Payment B**) to the Seller that covers settlement of Project Debt, of which the payment for the principal amount of outstanding debt shall be no more than the value stated in the table in paragraph 5 below, less, to the extent it is a positive amount, the aggregate, as at the Termination Date, of all credit balances on any bank accounts held by or on behalf of the Seller on the Termination Date and the value of any right of the Seller or the Lenders to receive any insurance proceeds or payments pursuant to letters of credit and bank guarantees and sums due and payable from the Contractors or the suppliers and any other third parties.

2.2 The Seller shall be liable to the Buyer for all costs and any direct loss or damages, incurred by the Buyer as a consequence of the termination of the PPA due to Seller Event of Default.

3. CONSEQUENCES OF TERMINATION IN RESPECT OF FORCE MAJEURE

The Buyer shall be required to pay a termination payment (**Termination Payment C**) to the Seller that covers:

3.1 Project Debt; and

3.2 80% of the net book value of the equity invested by the Shareholders (less any equity already re-paid to the Shareholders).

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4. **CALCULATION OF SHAREHOLDERS' EQUITY RETURN (SUBJECT TO ACTUAL FINANCIAL PERFORMANCE OF THE PROJECT)**

The Shareholders' equity return to be received is calculated as follows:

4.1 a copy of the Financial Close Financial Model (**Termination Model**) shall be prepared to accurately reflect the project's actual financial performance to date. This shall include the Project's timing, macroeconomic assumptions, construction phase costs, operations phase costs, funding, Energy sales and Deemed Energy Sales, as well as any other changes required to reasonably accurately represent the Project to the date of the termination;

4.2 the Termination Model shall then have all forecast macroeconomic assumptions (i.e. those assumptions regarding periods after the Termination Date) re-forecast, starting with the historic input closest to the Termination date, each period using the same proportionate adjustments compared to the previous period as was originally input as an assumption in the Financial Close Financial Model;

4.3 the Termination Model shall then have all forecast Project expenditure (i.e. those assumptions regarding periods after the Termination Date) re-forecast, starting with the historic input closest to the Termination date and thereafter using the same real terms proportionate adjustments between each forecast period as originally input as an assumption in the Financial Close Financial Model;

4.4 the Termination Model shall then have all forecast Energy generation re-forecast, in two steps:

4.4.1 Firstly, by adjusting the forecast Energy sales and Deemed Energy Sales based on the average difference between the Performance Ratio each year as assumed in the Financial Close Financial Model and the Performance Ratio historically achieved each year, and

4.4.2 thereafter using the same proportionate adjustments for each year as originally input as an assumption in the Financial Close Financial Model.

the resulting overall nominal equity IRR, measured over the full Term shall then be noted (**New Reference IRR**);

4.5 the Termination Model shall then be adjusted to: (a) include the costs, at the Termination date, described in Termination Payment A, including the application of such monies (such as the settlement of Project Debt) but excluding the payment for the equity return described in paragraph 1.1.2; and (b) to model the cessation of the Project's cash flows as of the Termination Date; and

4.6 the value of the equity return described in paragraph 1.1.2 will then be included in the Termination Model, and shall be calculated as the size of payment to be made to the Shareholders on the Termination date to exactly achieve the same New Reference IRR.

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5. TABLE OF TERMINATION PAYMENTS

Values shown in USD thousands:

End of quarter (including construction periods)	**Buyer EOD** *Termination Payment A*	**Seller EOD** *Termination Payment B*	**FM EOD** *Termination Payment C*
1	3,943	-	3,155
2	6,585	-	5,206
3	10,537	1,964	8,623
4	12,819	4,034	10,693
5	22,624	10,623	17,282
6	27,846	14,954	21,613
7	36,650	22,345	29,004
8	41,673	26,538	33,197
9	41,245	25,933	32,592
10	41,390	25,886	32,545
11	41,496	25,793	32,452
12	41,486	25,585	32,244
13	41,434	25,331	31,990
14	41,448	25,140	31,799
15	41,413	24,894	31,553
16	41,257	24,525	31,184
17	41,126	24,181	30,840
18	41,095	23,928	30,587
19	41,017	23,623	30,282
20	40,815	23,192	29,851
21	40,636	22,784	29,443
22	40,557	22,467	29,126
23	40,429	22,093	28,752
24	40,173	21,590	28,249
25	39,941	21,111	27,770
26	39,808	20,721	27,381
27	39,623	20,273	26,932
28	39,306	19,690	26,349
29	39,015	19,129	25,788
30	38,825	18,663	25,322
31	38,575	18,129	24,788
32	38,189	17,456	24,115
33	37,829	16,808	23,467
34	37,566	16,248	22,907
35	37,244	15,620	22,279
36	36,784	14,850	21,509
37	36,346	14,104	20,763
38	36,007	13,443	20,102
39	35,604	12,710	19,369
40	35,057	11,830	18,489
41	34,534	10,974	17,633
42	34,107	10,202	16,861
43	33,613	9,352	16,011
44	33,137	8,352	15,011
45	33,592	8,559	15,218
46	33,518	7,894	14,553
47	33,181	6,960	13,619
48	32,696	5,871	12,530

DocuSign Envelope ID: 15246B7C-65FA-4395-A216-71EFC9465C3A

49	32,238	4,811	11,470
50	31,913	3,865	10,524
51	31,727	3,038	9,698
52	31,396	2,059	8,718
53	31,087	1,104	7,763
54	30,851	203	6,862
55	30,699	-	6,659
56	30,278	-	6,659
57	29,794	-	6,659
58	29,382	-	6,659
59	28,982	-	6,659
60	28,444	-	6,659
61	27,890	-	6,659
62	27,412	-	6,659
63	26,941	-	6,659
64	26,327	-	6,659
65	25,698	-	6,659
66	25,138	-	6,659
67	24,587	-	6,659
68	23,962	-	6,659
69	23,621	-	6,659
70	23,502	-	6,659
71	23,182	-	6,659
72	22,807	-	6,659
73	22,475	-	6,659
74	22,301	-	6,659
75	21,921	-	6,659
76	21,484	-	6,659
77	21,095	-	6,659
78	20,861	-	6,659
79	20,415	-	6,659
80	19,910	-	6,659
81	19,451	-	6,659
82	19,151	-	6,659
83	18,634	-	6,659
84	18,055	-	6,659
85	17,504	-	6,659
86	17,109	-	6,659
87	16,491	-	6,659
88	7,405	-	-
89	-	-	-

DocuSign Envelope ID: 15246B7C-65FA-4395-A216-71EFC9465C3A

SCHEDULE 7
INSURANCE REQUIREMENT

The Seller shall at its sole cost and expense, to the extent available at reasonable commercial cost and on reasonable commercial terms in the African insurance market, obtain and maintain insurances set out below:

Insurance category	Limit of liability
Construction Works / All Risks (including Marine Transit / Cargo)	An amount not less than the full replacement value of the Facility / Facilities then under procurement and construction
Operating All Risks	An amount not less than the full replacement value of the Facility / Facilities then under operation
Public / General Liability	US$ 20,000,000 per occurrence

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SCHEDULE 8
AUTHORISATIONS

1. AUTHORISATIONS TO BE OBTAINED BY THE BUYER

1.1 Environmental Authorisation;

1.2 Auto-production Licence;

1.3 ACM Permit;

1.4 Construction Permit;

1.5 Contractor Site Office approval.

2. AUTHORISATIONS TO BE OBTAINED BY THE SELLER

2.1 N/A

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SCHEDULE 9
EARLY PROCUREMENT WORKS

1. SCOPE OF EARLY PROCUREMENT WORKS

1.1 Renewable energy substation;

1.2 Solar photovoltaic modules;

1.3 Inverters; and

1.4 Module mounting structure.

2. MAXIMUM COST OF EARLY PROCUREMENT WORKS

2.1 The maximum cost of the early procurement works shall be USD 5,230,586.

3. DELIVERY OF THE EARLY PROCUREMENT WORKS

3.1 Timing

3.1.1 The early procurement period shall extend from the date of signature of this agreement to the Early Procurement Longstop Date.

3.2 Delivery location

3.2.1 The Early Procurement Works shall be delivered to Port d'Ehoala, Madagascar.

4. SUPPLY AGREEMENTS FOR EARLY PROCUREMENT WORKS

4.1 The Early Procurement Works shall be contracted through the existing Early Works Agreement between CrossBoundary Energy and juwi.

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SCHEDULE 10
HANDOVER PROCEDURES

1. Testing

1.1. The following tests shall be conducted prior to Handover:

1.1.1. The Seller shall submit to the Buyer visual inspection checklists for all Facility components. The visual inspection shall verify that the installation of all components complies with as-built designs.

1.1.2. The Facility shall be subject to functional tests which should include confirmation that components operate within the expected parameters as well as respond correctly to transient conditions.

1.1.3. The Seller shall undertake testing of the Facility to demonstrate compliance with the Network Requirements.

1.1.4. A Capacity Test shall be performed as per same methodology agreed upon and used during Capacity Test at COD as set out in Schedule 5 (Testing Regime) and considering degradation of the facility.

1.1.5. The Performance Ratio Test shall be conducted in accordance with the method agreed upon at COD as set out in Schedule 5 (Testing Regime) and considering degradation of the facility.

2. Documentation and data

2.1. The Seller shall handover the computerised maintenance management system (CMMS) to the Buyer. The CMMS data shall include, but not limited to, the following:

2.1.1. full Facility and equipment register;

2.1.2. full technical details of each item of Facility and equipment on the register;

2.1.3. clearly defined maintenance strategies and step-by-step job plans for each item of plant and equipment on the register;

2.1.4. full inventory of spares, documentation and tools, etc.

2.2. All Project Data, historical maintenance and inspection documentation, as-built drawings, information and reports for the entire Facility shall be provided to the Buyer.

3. O&M

3.1. For handover before end of Term, the Seller shall conduct a 3-month training of Buyer personnel.

3.2. For handover at end of Term, the Seller shall start training no later than 1 year before the end of term.

4. Spare parts

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4.1. The Seller shall provide an itemised list of the spare parts, their price and frequency of replacement required for the operation and maintenance of the Facility throughout the Design Life.

4.2. Off-the-shelf consumable spare parts such as smaller bearings, bolts, nuts, washers and electronic components shall be identified by standard codes for type, size and material used.

4.3. For all spare parts, the Seller shall provide details of required storage arrangements in accordance with local climate conditions to prevent corrosion and other damage while in storage.

5. Warranties

5.1. The Seller shall demonstrate via performance tests or any other industry relevant tests that the PV modules' performance is within the manufacturer's performance warranties.

5.2. The Seller shall demonstrate that the inverters have been maintained as per manufacturer's procedures.

5.3. The Seller shall demonstrate that all the Facility components have been maintained as per manufacturer's procedures.

5.4. All warranties shall be transferred to the Port d'Ehoala SA or another nominee of the Buyer (where applicable).

6. Clearance of site

6.1. The Seller shall remove from site any components or tools that are not part of the Facility.

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SCHEDULE 11
MINIMUM GUARANTEED MWH

The below values have been extracted from the Financial Model dated 27 May 2021 and assume development and delivery of the Combined Facility:

End of operating year	Minimum MWh	Expected MWh
0	-	-
1	12,040	12,040
2	54,667	60,947
3	54,606	60,887
4	54,546	60,826
5	54,486	60,766
6	54,426	60,706
7	54,366	60,646
8	54,305	60,586
9	54,245	60,525
10	54,185	60,465
11	54,125	60,405
12	54,065	60,345
13	54,004	60,285
14	53,944	60,224
15	53,884	60,164
16	53,824	60,104
17	53,764	60,044
18	53,703	59,984
19	53,643	59,923
20	53,583	59,863
21	53,523	59,803

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SCHEDULE 12
UNDERPERFORMANCE WITHHOLDING

Underpeformance (% of Min. MWh)	% of Tariff payable / kWh as damages
< 95.0%	60.00%
< 90.0%	80.00%
< 85.0%	110.00%
< 80.0%	110.00%
> 75.0%	110.00%

DocuSign Envelope ID: 15246B7C-65FA-4395-A216-71EFC9465C3A

SCHEDULE 13
DETERMINATION OF DEEMED ENERGY

1. SOLAR PV DATA GATHERING

1.1 From the Solar COD, the Seller shall measure and record the following information (the **Solar Facility Power Curve (FPC) Data**):

1.1.1 Global Horizontal Irradiance (GHI) (kW/m^2), which is the solar radiation available on the horizontal plane of the Facility;

1.1.2 Plane of Array Irradiance (G_{POA}) (kW/m^2), which is the solar radiation available on the plane of a solar PV module;

1.1.3 Module Temperature (°C); and

1.1.4 Net Energy Output of the Solar PV Facility (kWh).

1.2 The following requirements shall apply to the measurement and recording of the Solar FPC Data:

1.2.1 The Solar FPC Data shall be recorded as average values taken over ten (10) minute intervals;

1.2.2 If any of the following occurs during a ten (10) minute interval, then that ten (10) minute interval will be excluded from the Solar FPC Data:

(a) any inverters are not available;

(b) the data is corrupted (as agreed by both parties); and

(c) the output from the Facility is being curtailed by the microgrid controller.

1.2.3 The Solar FPC Data shall be logged by a data logger on the Project Site and date stamped;

1.2.4 The Solar FPC Data shall be collected by the Facility SCADA system;

1.2.5 Plane of Array Irradiance shall be measured using a pyranometer (or group of pyranometers) mounted at a location at or near the Project Site (the "G_{POA} Reference Pyranometer"). For a tracking system, the G_{POA} Reference Pyranometer must be mounted on a tracking system. The design and installation of the G_{POA} Reference Pyranometer shall be confirmed by the Independent Engineer. The location of the G_{POA} Reference Pyranometer may not be changed without the prior written agreement of the Parties;

1.2.6 The Plane of Array Irradiance data shall be grouped in bins of 50 W/m^2;

1.2.7 Global Horizontal Irradiance shall be measured using a pyranometer (or group of pyranometers) mounted at a location at or near the Project Site (the "GHI Reference Pyranometer"). The design and installation of the GHI Reference Pyranometer shall be confirmed by the Independent Engineer. The location of the GHI Reference Pyranometer may not be changed without the prior written agreement of the Parties;

1.2.8 The Global Horizontal Irradiance data shall be grouped in bins of 50 W/m^2;

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DocuSign Envelope ID: 15246B7C-65FA-4395-A216-71EFC9465C3A

1.2.9 The module temperature shall be measured using a temperature sensor (or group of temperature sensors) mounted at an appropriate location within the Facility (the **Reference Temperature Sensor**). The design and installation of the Reference Temperature Sensor shall be confirmed by the Independent Engineer. The location of the Reference Temperature Sensor may not be changed without the prior written agreement of the Parties;

1.2.10 The module temperature data shall be grouped in bins of 5°C.

1.3 The Solar FPC Data shall be stored and analysed by the Seller in order to produce power curves for the Solar PV Facility that shall illustrate the relationship between the Net Energy Output of the Solar PV Facility and a G_{POA} for each temperature group. This suite of power curves will together form the Solar PV FPC.

2. **WIND DATA GATHERING**

2.1 From the Wind COD, the Seller shall measure and record the following information (the **Wind FPC Data**):

2.1.1 Reference Wind Speed (m/s) which is the wind speed measured by the nacelle anemometer of the reference wind turbine;

2.1.2 Reference Wind Direction (degrees) which is the wind direction measured by the nacelle wind vane of the reference wind turbine; and

2.1.3 Net Energy Output of the Wind Facility (kWh).

2.2 The following requirements shall apply to the measurement and recording of the Wind FPC Data:

2.2.1 The Wind FPC Data shall be recorded as average values taken over 10 minute intervals;

2.2.2 If any of the following occurs during a 10 minute interval, then that 10 minute interval will be excluded from the Wind FPC Data:

(a) any wind turbines are not available;

(b) the data is corrupted (as agreed by both parties); and

(c) the output from the Facility is being curtailed by the microgrid controller.

2.2.3 The Wind FPC Data shall be logged by a data logger on the Project Site and date stamped;

2.2.4 The Wind FPC Data shall be collected by the Facility SCADA system;

2.2.5 Reference Wind Speed shall be measured using the nacelle anemometer of the reference turbine at an appropriate location within the Facility (the **Reference Anemometer**). The design and installation of the Reference Anemometer and the selection of the reference turbine shall be confirmed by the Independent Engineer. The location of the Reference Anemometer may not be changed without the prior written agreement of the Parties;

2.2.6 The Reference Wind Speed data shall be grouped in bins of 0.5 m/s;

2.2.7 Wind Direction shall be measured using the nacelle wind vane of the reference turbine at an appropriate location within the Facility (the "**Reference Wind Vane**").

DocuSign Envelope ID: 15246B7C-65FA-4395-A216-71EFC9465C3A

The design and installation of the Reference Wind Vane and the selection of the reference turbine shall be confirmed by the Independent Engineer. The location of the Reference Wind Vane may not be changed without the prior written agreement of the Parties;

2.2.8 The wind direction data shall be grouped in bins of five degrees (5°).

2.3 The Wind FPC Data shall be stored and analysed by the Seller in order to produce power curves for the Wind Facility that shall illustrate the relationship between the Net Energy Output of the Wind Facility and a wind speed for each wind direction. This suite of power curves will together form the Wind FPC.

3. FACILITY POWER CURVE (FPC)

3.1 The FPC Data shall consist of both the Solar PV FPC and the Wind FPC.

3.2 The FPC Data shall be reported to the Buyer 20 days after the end of each Contract Year. The FPC Data shall be delivered in the following formats:

3.2.1 electronic copy of curves showing binned values only;

3.2.2 electronic copy of scatter plot showing the individual average ten (10) minute values; and

3.2.3 all raw data obtained from the SCADA, Reference Pyranometers, Reference Temperature Sensor, Reference Anemometer and Reference Wind Vane, averaged, in electronic format, to enable the Buyer to compare the raw data to the binned data.

3.3 Within one Month after the end of the first Contract Year following the COD, the FPC shall be confirmed by the Independent Engineer, after which it shall become the **Approved FPC**, unless the Buyer and Seller agree, at any time, to amend the FPC, in which case such amended FPC shall be the Approved FPC.

3.4 Subject to paragraph 3.6, if an Approved FPC is not completed within one year of Commercial Operation Date, Deemed Energy beyond that date and until an Approved FPC is completed, shall be determined by the Independent Engineer.

3.5 The Approved FPC shall be reviewed at the end of every five (5) Contract Years, starting after the end of the fifth (5th) Contract Year, at the expense of the Seller to account for degradation of the Facility. An interim revision may be requested by either Party at any time during the Term and the costs of such revision shall be borne by the Party requesting the revision.

3.6 If the insufficiency of data available to complete an Approved FPC is due to the breach, wilful misconduct or negligence of the Seller, then no Deemed Energy Payments shall be payable by the Buyer until such breach, wilful misconduct or negligence is remedied and an Approved FPC is completed.

4. DEEMED ENERGY QUANTITIES

4.1 The Deemed Energy for each 10-minute interval shall be calculated as follows:

$$DE = EEO_{Solar} \times SFA + EEO_{Wind} \times WFA - NEO$$

Where:

DE = Deemed Energy

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EEO_{Solar} = Expected Energy Output for each period of Deemed Energy, calculated based on the Solar Facility Power Curve and considering the G_{POA} and module temperature measured by the G_{POA} Reference Pyranometer and Reference Temperature Sensor during the period of Deemed Energy

SFA = Solar Facility Availability during the specific 10-minute period calculated as the ratio of inverters available during the 10-minute period with respect to the total number of installed inverters

EEO_{Wind} = Expected Energy Output for each period of Deemed Energy, calculated based on the Wind Facility Power Curve and considering the wind speed and wind direction measured by the Reference Anemometer and Reference Wind Vane during the period of Deemed Energy

WFA = Wind Facility Availability during the specific 10-minute period calculated as the ratio of wind turbines available during the 10-minute period with respect to the total number of installed turbines

NEO = Net Energy Output from the Facility for each period of Deemed Energy

4.2 EEO_{Solar} for Contract Year 1 will be calculated based on the submitted P50 Solar Facility Power Curve verified by the Independent Engineer.

4.3 EEO_{Wind} for Contract Year 1 will be calculated based on the submitted P50 Wind Facility Power Curve verified by the Independent Engineer.

5. VALIDITY OF A TEN-MINUTE PERIOD

If the Deemed Energy Period commences during the first five minutes of a 10 minute period, such 10 minute period shall be taken into account in the calculation of the Deemed Energy Payment. If the Deemed Energy Period commences during the last five minutes of a 10 minute period, such 10 minute period shall not be taken into account in the calculation of the Deemed Energy Payment.

DocuSign Envelope ID: 15246B7C-65FA-4395-A216-71EFC9465C3A

SCHEDULE 14
PERFORMANCE BOND

[PERFORMANCE BOND PROVIDED BY]

[INSERT BANK DETAILS]

THIS BOND is made on [•]

[insert name of bank], whose registered office is situated at [•] (the **Bank**), is irrevocably and unconditionally bound to QIT MADAGASCAR MINERALS S.A, a Malagasy company with registration number 98.B.480, Antananarivo, duly incorporated under the laws of Madagascar and fiscally registered under NIF 4000164665, STAT 08101 11 1998 0 10051, whose registered office is situated with its business address at Immeuble ASSIST, Ivandry, Lot N°35, 5ème étage, 101 Antananarivo, Madagascar (together with its successors, novatees and assigns of this bond, the **Beneficiary**), in respect of the Bond Amount, as set out below, for payment of which amount the Bank binds itself in accordance with the provisions of this bond.

RECITALS:

A. By a renewable energy services agreement (as such agreement may be altered, amended or varied from time to time) (this **Agreement**) entered into between (1) the Beneficiary and (2) Seller, whose registered office is situated at c/o Axis Fiduciary Ltd, 2nd Floor, The AXIS, 26 Bank Street, Cybercity Ebene, Mauritius (together with its successors, novatees and assigns of this Agreement, the **Seller**), the Seller has agreed with the Beneficiary to carry out and complete certain works and services upon and subject to the terms and conditions contained in this Agreement.

B. The Seller has agreed, under this Agreement, to procure for the benefit of the Beneficiary a bank guarantee in the form of this bond.

C. The Bank has agreed, at the request of the Seller, to enter into this bond for the benefit of the Beneficiary (the Bond). The Bank hereby confirms that the Beneficiary holds the Bond Amount at its disposal, and as security for the proper performance by the Seller of all of its obligations in terms of and arising from the Agreement, in lieu of requiring the Seller to provide the Beneficiary with a deposit security in another form.

1. In this Bond the following words and expressions shall have the following meanings:

1.1 **Bond Amount** means at any time one of the following amounts:

1.1.1 from the Effective Date until the date that the construction of the Wind Facility is commenced, the bond amount is USD 1,125,000;

1.1.2 from the date that construction of the Wind Facility is commenced and until the Commercial Operation Date of the Solar PV Facility, the bond amount is USD3,059,000; and

1.1.3 once the Commercial Operation Date of the Solar PV Facility is achieved, the bond amount shall be reduced to an amount of USD1,934,000 to secure the achievement of the Commercial Operation Date of the Wind Facility by the Scheduled COD;

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DocuSign Envelope ID: 15246B7C-65FA-4395-A216-71EFC9465C3A

1.2 **Business Day** means a day on which banks are open for business in Madagascar excluding a Saturday, Sunday or public holiday;

1.3 **Expiry Date** has the meaning given in paragraph 9; and

1.4 **Third Party** has the meaning given in paragraph 17.

2. The Bank hereby irrevocably and unconditionally undertakes to pay on demand on any Business Day on which it receives a written demand from the Beneficiary in accordance with paragraph 4 below, an amount equal to the lesser of:

2.1 the amount specified in such demand; and

2.2 the Bond Amount.

3. The Bank's obligation to make payments under this Bond shall arise on receipt of a demand made in accordance with paragraphs 4, 5 and 6 below.

4. The Beneficiary may make one or more demands under this Bond. The demand shall state that the Seller has defaulted in its obligations under this Agreement.

5. The Bank shall not be required or permitted to make any other investigation or enquiry as to whether the Seller has defaulted in its obligations under this Agreement. The Bank shall be obliged to make payment under this Bond without any proof in relation to any alleged breach, default, or other circumstances under which this Bond is called and without reference to the principal.

6. Each demand shall be:

6.1 triggered by the Seller's failure to perform or default in its obligations under the Agreement; and

6.2 signed by a director or authorised signatory of the Beneficiary and shall bear the confirmation of your banker or authenticated SWIFT, that the signatories thereon are authorised to sign; and

6.3 delivered to the Bank on a Business Day and during normal banking hours at the Bank's offices at [•] (or such other office of the Bank in [●] as the Bank may from time to time notify the Beneficiary).

7. A demand delivered by hand shall be effective from the date when it is delivered to the Bank in accordance with paragraph 6.

8. The maximum aggregate liability of the Bank under this Bond shall not exceed the Bond Amount.

9. This Bond is irrevocable. It will take effect from the date it is issued and will expire 60 days after the Termination Date (the **Expiry Date**). The expiry of this Bond in accordance with this paragraph 9 shall not affect or discharge the liability of the Bank to make payment of any written demand from the Beneficiary made in accordance with paragraphs 3, 4, 5 and 6 above and delivered to the Bank on or before the Expiry Date.

10. All payments to be made by the Bank under this Bond shall be made to the account specified in the relevant demand.

11. The obligations of the Bank under this Bond are primary and not by way of surety only.

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12. The Bank shall not in any way, to the extent permissible by law, be released or discharged from any liability under this Bond by any invalidity, illegality or unenforceability of this Agreement nor by any alteration, amendment or variation in the terms of this Agreement nor by any allowance of time by the Beneficiary under this Agreement nor by any forbearance or forgiveness or indulgence in respect of any matter or thing concerning this Agreement nor by the insolvency, bankruptcy, winding up or reorganisation of the Seller or the Beneficiary nor by any dispute or disagreement whatsoever between the Beneficiary and the Seller under or in relation to this Agreement, nor by any other act, omission, matter or thing (whether similar to the foregoing or otherwise) whereby the obligations of the Bank under this Bond might (but for this provision), under any applicable law or otherwise, be discharged or affected.

13. The Beneficiary shall not be entitled to assign or transfer this Bond without the prior written consent of the Bank.

14. Any notices or communications to be made by the Bank or the Beneficiary to the other under or in connection with this Bond (other than demands, which are to be made under paragraphs 3, 4, 5 and 6 above) shall be in writing and made to the other at the following applicable address:

14.1 In the case of the Bank:

Address:	[●]
Email	[●]
Facsimile:	[●]
Marked for the attention of:	[●]

14.2 In the case of the Beneficiary:

Address:	Immeuble ASSIST Lot N°35 5è étage Ivandry Antananarivo 101 Madagascar
Email	david-alexandre.tremblay@riotinto.com
Marked for the attention of:	David-Alexandre Tremblay

15. All payments under this Bond shall be made in USD and shall be free of any set-off, withholding or deduction of any kind whatsoever.

16. Nothing in this Bond shall, or is intended to, create rights and or benefits in favour of any person who is not a party to this Bond (a **Third Party**) other than the Beneficiary, and no term or provision of this Bond shall be, or is intended by the Bank or the Beneficiary to be, enforceable by any Third Party, other than the Beneficiary. For the avoidance of any doubt, the Bank acknowledges and agrees that the Beneficiary has the benefit of, and is entitled to enforce, this Bond, even though the Beneficiary is not party to this Bond.

17. Any waiver by the Beneficiary of the terms of this Bond or any consent or approval given by the Beneficiary shall only be effective if given in writing and then only for the purpose and upon the terms and conditions, if any, on which it is given.

18. If at any time one or more provisions of this Bond is or becomes illegal, invalid or otherwise unenforceable in any respect, such provision or provisions will be ineffective to the extent only of such illegality, invalidity or unenforceability and such illegality, invalidity or unenforceability will not invalidate the other provisions of this Bond.

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19. This Bond is binding on the successors of the Bank.

20. This Bond shall be governed by and construed in accordance with the laws of England and Wales.

21. The Bank and the Beneficiary irrevocably agree that any competent court of England, with jurisdiction, shall have the non-exclusive jurisdiction to hear and determine any suit, action or proceeding and to settle any dispute which may arise under or in connection with this Bond and for such purposes irrevocably submit to the non-exclusive jurisdiction of such courts.

22. For the avoidance of doubt, the Seller shall be liable for the cost of procuring and maintaining this Bond, and for the costs of the Beneficiary in enforcing this Bond, and the Beneficiary shall have no liability to the Bank in respect of such costs.

23. This Bond is subject to the Uniform Rules for Demand Guarantee (ICC Publication No. 758).

SIGNED at on 2021

For: [●]

_____

Signatory:

Capacity:

Authority:

DocuSign Envelope ID: 15246B7C-65FA-4395-A216-71EFC9465C3A

SCHEDULE 15

BUYER ENABLING WORKS

Table 1. Description of individual site Enabling Works are listed below:

Physical Construction Enabling Works

#	Description	Applicable Project Phase
1.	**Site Access** – The Buyer will provide site access as follows: • trucks with 40" containers to the Solar and Wind Project Site • trucks with 40" containers to the BESS site • crane access for unloading the BESS at site • crane access to the wind site • Truck access to batching plant site • Truck access to aggregate quarry site • Construction Vehicles to Solar and Wind Project Site • Construction Vehicles to BESS site • Earthmoving and excavation equipment to Solar and Wind Project site • Earthmoving equipment to BESS site Access to the Solar and Wind Project site will be via the Port Road. Access to the BESS site will be via the thermal power plant access road	**Site Establishment** **Construction** **Commissioning**
2.	**Staff Welfare Facilities:** Where possible and practical, the Buyer to grant the Seller and its Contractor(s) access to first aid, medical clinic and sanitary facilities and access to canteen services subject to payment by the Seller and its Contractor(s)' personnel of the relevant costs during scheduled work hours and subject to available space.	**Site Establishment** **Construction** **Commissioning**
3.	**Interconnection Downtime:** The Buyer to make provision for downtime, the Seller to notify the Buyer in writing, 4 weeks before connection is required, and confirm 2 weeks prior to the planned date. The Buyer will arrange for their own staff to shut down the board and hand it over to the Seller who will then make the modifications/connection. The Buyer will then reenergize the board once it is handed back by the Seller. Estimated downtime is 4 hours per day for 4 days.	**Construction** **Commissioning**
4.	**Support for equipment unloading and Customs clearance at the Port:** The Buyer shall support as far as practically and reasonably possible, the Seller and its Contractor with arranging and expediting unloading and customs clearance of equipment at the Port d'Ehoala.	**Site Establishment** **Construction**
5.	**Road base material and concrete aggregate:** The Buyer will allow the Contractor to obtain road base material and aggregate from the existing mine burrow pits / quarry. The Buyer shall obtain and maintain for the duration of the construction phases of the project, all required permits and put in place all requirements to reinstate the operational status of the existing mine burrow pits in order to provide base material and aggregate to the project as required.	**Site Establishment** **Construction**
6.	**Sand:** Cement stabilized sand and trench bedding sand will be provided by the Buyer from the existing mine burrow pits / sand quarry. The Buyer shall obtain and maintain for the duration of the construction phases of the project, all required permits and put in place all requirements to reinstate the operational status of the existing mine burrow pits in order to provide base material and aggregate to the project as required.	**Site Establishment** **Construction**

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Enabling Equipment and Upgrades

#	Description	Applicable Project Phase
1.	**Power Factor Correction Equipment:** *[Description: To be defined further when more info is available]*	**Operational**
2.	**Electrode Steam Boiler:** *[Description: To be defined further when more info is available]*	**Operational**
3.	**Network Protection Upgrades:** *[Fault Study and update protection design as identified in the network studies executed by the Seller]*	**Operational**
4.	**Thermal Power Plant integration:** [installation, commissioning and testing of switch room and switchgear, Communications and Control System for connection/integration of WPS, SPS ad BESS with Thermal Power Plant]	**Operational**
5.	**Public Access Roads:** The Buyer to provide and maintain public access roads.	**Site Establishment** **Construction** **Commissioning** **Operational**

Information Requirements – *Reliance Material*

#	Description
1.	**Sharing of Health and Safety Standards:** The Buyer shall provide the Seller with the applicable health and safety requirements and procedures.
2.	**Electrical Design Standards:** The Buyer shall provide specific requirements and Electrical Design Standards to be incorporated in the Sub-station and other electrical designs.
3.	**Sequence of Operation:** The Buyer shall provide status of the existing control strategy and breaker status under the existing plant modes of operation.
4.	**Underground services:** If the Buyer becomes aware of existing or new underground services at the BESS Site location, it shall inform the Seller without delay.

Permits and Licenses

#	Description
1.	Update and amend the Auto-Production Permit to include Solar + Wind + BESS.
2.	Update and amend Environmental Permit of the QMM facility to include Solar + Wind + BESS and related infrastructure.
3.	Provide site access permit to the site within Port d'Ehoala concession.
4.	Obtain permission agreement of the identified Site area from the Government of Madagascar through the APMF.
5.	Provide long-term sub-lease agreement to the Seller for the identified Sited areas.
6.	Obtain approval from Aviation Civile de Madagascar for construction and operation of the Solar and Wind Facilities.